AGREEMENT FOR CONSTRUCTION

between

MPCC CORP

and

ELLI NY DESIGN CORP.

Owner:

New York City Department of Design and Construction
Division of Public Buildings

Architect/Engineer:

Smith-Miller + Hawkinson Architects LLP

Project:

Brooklyn Animal Care Center

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AGREEMENT

This AGREEMENT made this **18th** day of **July**, **2023** by and between **MPCC CORP**, with offices at *81 Rockdale Avenue, New Rochelle, New York 10801* (hereinafter referred to as the "CONTRACTOR") and **ELLI NY DESIGN CORP.,** a contractor authorized to do business in the State of New York, with offices at 50-01 Metropolitan Avenue, Ridgewood, NY 11385 (hereinafter referred to as the "SUBCONTRACTOR").

WHEREAS, the CONTRACTOR has heretofore entered into a contract dated **July 7, 2023** (hereinafter referred to as the "prime contract") with **New York City Department of Design and Construction** (hereinafter referred to as the "OWNER") provided for the CONTRACTOR to perform the work called for under the OWNER's specification for the following project:

Project ID HL82BKLN Brooklyn Animal Care Center

WHEREAS, Contractor wishes to retain the services of Subcontractor to perform work for the Project, and Subcontractor is ready, willing and able to construct the Project in accordance with this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants hereinafter set forth, Contractor and Subcontractor hereby agree as follows:

ARTICLE 1

CONTRACT DOCUMENTS

1.1 **DEFINITIONS**

1.1.1 Contract Documents shall consist of:

a. This Agreement;
b. The Prime contract between Owner and Contractor;
c. The Specifications and drawings prepared by Dattner Architects
d. General Conditions, Supplementary Conditions, Special Conditions;
e. Addendum No. 1 through Addendum No. 7;
f. Riders 1, 2, 3, 4, 5, 6, and 7; and
g. PLA Labor Agreement

1.2 **EXECUTORY CONTRACT**

Time being of the essence, the Subcontractor is required, within five days of receipt of this agreement, to sign, seal and return to Contractor this Agreement with the specified Payment and Performance Bonds in compliance with Article 5.2 of this Agreement.

This agreement, when signed by both parties shall be an executory agreement subject to the approval of the Owner. Until such time as the Subcontractor is approved for work on the project site, this agreement shall be executory, and no work shall commence by the Subcontractor and the Contractor shall not be liable for any payment until such time as the Subcontractor receives a Notice to Proceed from the Contractor.

In the event that the Subcontractor shall not be approved by the Owner, this contract shall be void and shall be given no further effect and the Subcontractor shall not be entitled thereafter to any damages arising from or out of this executory agreement from either the Contractor or the Owner.

ARTICLE 2

SCOPE OF WORK, MATERIALS AND LABOR

2.1 Scope of Work

Contract Work shall include, but not be limited to, all labor and materials necessary to perform, deliver and install the work as shown and described more fully set forth in the Contract Specifications and Drawings:

Centerpile 8/31/23

The Subcontractor shall furnish all labor, materials, scaffolding, tools, equipment, trash removal, hoisting, disconnects, safe-off, demolition, necessary for the prosecution and completion of all Architectural Woodwork as per contract drawings and specification, specifically Section 064023, all required submittals, shop drawings, coordination, Addendum #1 thru 4, phasing, all required acceleration and overtime, comply with all DDC requirements, and in accordance with Information Bidders, General Requirements Division 1, Schedule A, B, C, and D of the Contract Documents.

8/31/23

~~Including but not limited to to Elli's highlighted scope Exhibit "A" included herein.~~ 8/31/23

NOT INCLUDED (A2)

Subcontractor shall be responsible for the installation of all work as shown and described in the Plans, Specifications, General Conditions of this project necessary to constitute complete Work as hereinbefore defined in Section 2.1, Scope of Work.

Subcontractor shall perform all the Work required by and in conformity with the Contract Documents in connection with the construction of the Project. All materials to be furnished and labor and work to be performed shall be completed by Subcontractor in strict accordance with the Contract Documents, and in conformity with all Federal, State, County, City and OSHA requirements applicable with respect thereto.

Subcontractor shall be responsible for the performance of all work and close coordination [between himself and all other trades, subcontractors, agencies, bureaus and the General Contractor] necessary to constitute complete installation required for the work as is shown and described in the Drawings, Specifications, Contract Terms and Conditions, Special Conditions, applicable General Requirements of this project, and with all other design and installation standards published or applicable by the Owner, or any other agency, department or bureau having jurisdiction over the items subject to installation under this Contract.

In the event of continued non-performance, late deliveries [more than 10 days off schedule], or failure to meet schedule and progress requirements due to the Subcontractor's acts or non-performance, the Contractor shall have the absolute right to direct the subcontractor to assign to the Contractor all verbal, written or other agreements, contracts, orders, that the subcontractor may or shall have with any supplier, manufacturer, or fabricator. By virtue of this clause in the subcontract, the Subcontractor authorizes, appoints and designates the Contractor as the beneficiary of all agreements between the manufacturer, fabricator or supplier; the agent in fact of the Subcontractor in the event that the Contractor directs that the agreements with manufacturers, fabricators or suppliers be assigned to the Contractor for completion, implementation, or resolution of conflicts with aforesaid. The Contractor shall be absolutely entitled to enter into privity of contract with all of the subcontractors, manufacturers, suppliers or fabricators in the event that the terms of this clause are implemented in any way whatsoever.

In the event that the Contractor is required to invoke, whether partially or in full, the requirements of this clause, the Subcontractor shall not be entitled for any damages from either

the Contractor or the Owner. The Contractor reserves the right to back charge, set-off or credit the Subcontractor for any costs associated with implementation of any part or all of the terms of this clause without further recourse, notice or demand.

2.2 **Contract Documents**

The Contract Documents form the contract between Contractor and Subcontractor. References in the Contract Documents to "the contract", "this contract" or "the Construction Contract" shall be deemed to include all of the Contract Documents. Reference to "this Agreement" or "the Agreement" shall refer to this instrument, which is one of the Contract Documents. The provisions of the Contract Documents are hereby incorporated into this Agreement with the same force and effect as though set forth in full herein and Subcontractor shall be bound to Contractor, to the same extent that Contractor is bound to the Owner, by all of the terms and provisions of the Contract Documents and by all decisions, rulings and interpretations of the Owner or its authorized representatives. This Agreement and the rights of Subcontractor are subject in all respects whatsoever to all requirements of the Contract Documents. In the event of any inconsistency between this Agreement and other Contract Documents, the terms of this Agreement shall govern.

2.3 **Intent of Contract Documents**

(a) The intent of the Contract Documents is to include in the Work all labor and materials, insurance, tools, equipment, taxes, approvals, transportation, surveys, scaffolding, carting, manufacturers testing, temporary power or heat, field engineering and services, and any other items required to execute and complete the Work satisfactorily and in accordance with the Contract Documents, as per Section 2.1 Scope of Work.

(b) Subcontractor shall perform and complete the Work in accordance with the intent and meaning of the Contract Documents and shall perform all work incident thereto or as is usually performed in connection therewith or as is reasonably inferable therefrom.

(c) If any conflicts or ambiguities are found in or between the Drawings and Specifications, or among any of the Contract Documents, they shall be brought to the attention of the Contractor within (48) hours of discovery for resolution. The Contractor, the Owner and the Architect/Engineer will interpret the Contract Documents so as to secure in all cases the most substantial and complete performance of the Work as is most consistent with the needs and requirements of the Work.

(d) Captions, headings, cover pages, tables of contents and footnote instructions contained in the Contract Documents are inserted only to facilitate reference and for convenience and in no way define, limit or describe the scope, intent or meaning of any provision of the Contract.

(e) Drawings and Specifications are complementary. Anything shown in the Drawings and not mentioned in the Specifications or mentioned in the Specifications and not shown in the Drawings, shall have the same effect as if shown or mentioned in both.

(f) A typical or representative detail indicated on the Drawings shall constitute the standard for workmanship and material throughout corresponding parts of the Work. Where necessary, and where reasonably inferable from the Drawings or Specifications, Contractor shall adapt such representative detail for application to such corresponding parts of the Work. The details of such adaptation shall be subject to approval by Contractor except as

qualified herein. Repetitive features shown in outline on the Drawings shall be in exact accordance with corresponding features completely shown.

(g) The layout of mechanical and electrical systems, equipment, fixtures, piping, ductwork, conduit, specialty items, and accessories indicated on the Drawings is diagrammatic, and all variations in alignment, elevation, and detail required to avoid interferences and satisfy architectural and structural limitations are not necessarily shown. Actual layout of the Work shall be carried out without affecting the architectural and structural integrity and limitations of the Work and shall be performed in such sequence and manner as to avoid conflicts, provide clear access to all control points, including valves, strainers, control devices, and specialty items of every nature related to such systems and equipment, obtain maximum headroom, and provide adequate clearances as required for operation and maintenance.

(h) Subcontractor shall be responsible for keeping the Work neat and clean and its working area in a neat and presentable fashion by collecting, removing and disposing, off project site on a daily basis, all papers, cartons and debris caused by its Work or personnel.

2.4 **Title to Materials**

Title to all materials shall immediately vest in Contractor upon payment in respect to such materials, whether or not then incorporated or installed into the Project. The materials shall then become the sole property of Contractor subject to the right of the Owner to reject same for failure to conform to the standards of any or all of the Contract Documents. Title to all Work and materials shall be in Contractor, free and clear of all liens, claims, security interests or encumbrances. No Work or materials shall be fabricated or delivered to the Site by Subcontractor or Materialmen subject to any security interest, lien or similar encumbrance.

2.5 **Subcontractor's Obligations**

(a) Subcontractor shall in a good and workmanlike manner perform all the Work required by the Contract in accordance with the best practice of Subcontractor's trade and within the time limit prescribed in Section 3.1 hereof. Subcontractor shall consistently supervise and direct the Work using its best skill and attention. Subcontractor shall be solely responsible for all construction means, methods, techniques, and procedures within the scope of Subcontractor's Work.

(b) Subcontractor shall furnish, erect, maintain, and remove such construction plant and such temporary Work as may be required. Subcontractor shall be responsible for the safety, efficiency and adequacy of Subcontractor's plant, appliances and methods, and for damage which may result from failure or improper construction maintenance or operation of such plant, appliances and methods. Subcontractor shall comply with all terms of the Contract Documents, and shall do, carry on and complete the entire Work to the satisfaction for the Contractor and Owner.

(c) Subcontractor shall provide all equipment, tools and materials and whatever else may be required for proper performance of the Work unless stated otherwise in the Contract Documents. The Subcontractor shall at its own cost and expense apply for and obtain all necessary permits, licenses and fees. The Subcontractor further agrees to do all cutting, fitting, patching and protection of its Work that may be required to make its several parts come together properly and to fit it to receive or be received by the work of other trades shown upon or reasonably implied by the Contract Documents. Subcontractor shall protect its work by approved methods so that same will not be marred by the work of workmen of other trades.

(d) Subcontractor shall deliver all materials at such time and in such quantities as will insure the speedy and uninterrupted progress of the Work and subject to the determination and directives of the Contractor. All materials shall be delivered to the Site in proper order and quantity and shall be stored at the Site, if storage space is available in Contractor's opinion, in such places as Contractor shall direct. Subcontractor shall handle and protect all materials used in performance of the Work and shall maintain the protection of any adjacent work [whether newly installed or existing] and shall be responsible for the repair or replacement, at no cost to the Contractor, of any damaged work that is caused by the operations or installations of the Subcontractor. After final completion and acceptance of the Work, or sooner if requested by Contractor, Subcontractor shall remove all surplus materials, equipment, temporary structures and scaffolding furnished by it which have not been incorporated in the Work.

(e) Subcontractor shall follow and perform the Work in accordance with the Contract Documents as interpreted by Contractor, the Owner and the Architect/Engineer. All instructions or directions given to Subcontractor's Superintendent shall be as binding as if given to Subcontractor itself.

(f) Subcontractor shall give all notices and comply with all laws, ordinances, rules, regulations and lawful orders of any public authority bearing on the performance of the Work. The Subcontractor will be responsible for violation of any laws, codes, ordinances, rules and orders, and will indemnify the Contractor for any loss, damage, fine or penalty resulting from it, by reason of any such violation. If Subcontractor observes that any of the Contract Documents are at variance with any applicable laws in any respect, Subcontractor shall promptly notify Contractor and in writing, and any necessary changes shall be accomplished by appropriate modification. If Subcontractor performs any Work knowing it to be contrary to such laws, codes, ordinances, rules and regulations, and without such notice to Contractor, it shall assume full responsibility therefore and shall bear all costs attributable thereto.

(g) The Subcontractor shall provide all labor, materials and equipment and perform all the work for the following described parts and divisions of work and materials specified in the prime contract, in accordance with all the terms, conditions and covenants of said plans and specifications. All such labor and materials shall be the best of their respective kind and the Subcontractor shall provide at its own expense, all tools, scaffolding, hoists, elevator service, implements, water, heat, light, power, electric service, cartage, storage space, shop drawings and permits necessary for the due performance of this contract. The Subcontractor shall pay all inspection fees and license fees.

(h) The Subcontractor assumes all the obligations of the Contractor under the prime contract insofar as all work performed by said Subcontractor and shall be required to do all things and be bound by all rulings of the Owner to the same degree as the Contractor is bound. The Subcontractor shall furnish all shop drawings, certificates and guarantees required under the prime contract pertaining to said Subcontractor's portion of the work. It is the Subcontractor's responsibility to furnish and locate all sleeves, inserts, lines, etc. required to complete its work.

(i) The Subcontractor agrees to and hereby accepts full and exclusive liability for the payment of any and all contributions or taxes imposed by the laws of the United States or by the laws of any state or city and which are measured by the wages, salaries, or other remuneration paid to persons employed by the Subcontractor on the work to be performed hereunder. The Subcontractor shall furnish the Contractor such payroll information or employment records as may enable the Contractor to comply with the law or laws imposing such contributions or taxes and the Subcontractor agrees to reimburse the Contractor for the entire amount of contributions, taxes or penalties that the Contractor may be required to pay because

of the failure of the Subcontractor to furnish such information or records, or because of the failure of the Subcontractor to pay such contributions or taxes. The Contract price includes and the Subcontractor shall be liable for the payment of all sales, use or other taxes, of whatever nature levied or assessed against the Owner, the Contractor or the Subcontractor arising out of the furnishing or installing by the Subcontractor hereunder of any kind of building materials, supplies or equipment.

(j) In case the nature of the damages or defects of any particular work or works is such that in the judgment of the Contractor is not practical to have the work corrected, the Contractor shall have the right to take such sums of money from the amount due to the Subcontractor as the Contractor considers a fair and reasonable remuneration for the difference in value of the material or work furnished from that specified, or for the damage to the complete work.

(k) Should the proper, workmanlike and accurate performance of any work under this Agreement depend in any way upon the proper workmanlike or accurate performance of any work by another subcontractor on the project, the Subcontractor agrees to ascertain any defects in such subcontractor's work, and to report the same, in writing to the Contractor before proceeding with its work which is so dependent, and shall allow to the Contractor a reasonable time to remedy such defect, it being the intention of the parties hereto that the entire work on said project shall be properly performed in a workmanlike manner.

(l) Before and while proceeding with the project, the Subcontractor will accurately check everything previously or contemporaneously done by other trades in any way relating to the work performed pursuant to the Subcontract and determine the correctness of it. Any failure on the Subcontractor's part to detect or report such discrepancies to the Contractor, in writing, will relieve the Contractor of any and all claims by Subcontractor for costs, expenses, or damages resulting therefrom.

(m) The dimensions indicated in the drawings and specifications shall govern. No drawings shall be scaled. The Subcontractor shall verify all dimensions and conditions at the job site, and in case the Subcontractor detects any discrepancies, such discrepancies shall be reported to the Contractor at its job site office immediately by word of mouth or telephone, and thereafter, confirmed in writing addressed to Contractor's executive office. The Subcontractor also shall take such measurements at the job site as will insure the proper matching and fitting of the job with and to nearby contiguous work.

2.6 **"Or Equal"/Substitution Clause**

(a) The products, materials and equipment of manufacturers referred to in the Specifications and on the drawings are intended to establish the standard of quality and design required; however, materials of manufacturers, other than those specified, may be used but only if approved in writing by Contractor and Owner.

(b) It is understood and agreed that the Owner and Contractor are entitled to specify products, materials and equipment for which no substitution will be permitted. The refusal to accept a substitution or proposed "or equal" shall be final and binding.

(c) Contractor or Owner shall be the judge of equivalency of proposed substitute materials.

(d) If Subcontractor desires to use a substitute item, Subcontractor shall make application to Contractor in writing in sufficient time, having regard to the progress of the Work, the period of delivery of the goods concerned and adequate time for review, stating and fully identifying the proposed substitute, cost changes, if any, and shall submit substantiating data, samples, and/or brochures, of the item proposed.

(e) Prior to proposing any substitute item, Subcontractor shall satisfy itself that the item Subcontractor proposes is, in fact, equal to that specified and has demonstrated such equality by at least three years of satisfactory service, that it will fit into the space allocated and within the load allocated for the same, that it affords comparable ease of operations, maintenance and service, that its appearance, longevity and suitability for the climate and use are equal to or better than that specified, and that the substitution requires no change in dimension or design of any other work of Subcontractor, of any other subcontractor or in the time required for the performance thereof.

(f) The burden of proof that a proposed substitution is equal to a specified item shall be upon Subcontractor, who shall support its request with sufficient test data and other means to permit Contractor and Owner to make a fair and equitable decision on the merits of the proposal.

(g) Materials and methods proposed as substitutions for specified items shall be supported by certification of their acceptance by any authority, person or persons having jurisdiction over the use of the specified material or method.

(h) The Subcontractor warrants the suitability of any substitution. Acceptance of substitutions shall not relieve Subcontractor from responsibility for compliance with all the requirements of Contract Documents. If notwithstanding the provisions of subsection (e) above, changes in other parts of the Work or the work of other contractors are required by its substitutions, Subcontractor shall be responsible for the costs of any such changes.

(i) Time being of the essence, the Contract Time shall not be extended by any circumstance resulting from a proposed substitution, nor shall Subcontractor be entitled to any compensation for any delay caused thereby or related thereto.

2.7 **Quality and Labeling**

All materials furnished shall be new unless stated otherwise. When materials are specified to conform to any standard, the materials delivered to the Site shall bear manufacturer's labels stating that the materials meet such standards. The above requirements shall not restrict or affect Contractor's right to test materials as provided in the Contract.

ARTICLE 3

TIME OF PERFORMANCE, PROGRESS SCHEDULE, COORDINATION, TIME EXTENSION

3.1 **Contract Time**

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Time is absolutely of the essence in the performance of this Contract. Subcontractor must comply with a specific schedule determined and provided by the Contractor and provide complete submittal package, including his qualifications, within ~~two~~ weeks of receipt of executed contract from Contractor. In the event of non-approval of original submittal package by Owner, Subcontractor is to take all necessary measures to fully comply and resubmit package with complying Owner's requirements, within one week following receipt of said non-approval. Subcontractor's failure to comply with the requirements of Section 3.1 shall be deemed a material breach of the Subcontract and shall constitute an "Event of Default" under Article 13.1. Subcontractor shall have the responsibility to coordinate all work, layouts, coordination with other subcontractors, public agencies, delivery dates and time with the Contractor's Project Superintendent.

Contractor makes no representation or guaranty as to when the construction site or any part thereof will be available for the performance of the Subcontract or as to whether conditions at the construction site will be such as to permit the Subcontract to be performed

thereon without interruption or by any particular sequence or method or as to whether the performance of the Subcontract can be completed by the time required under this Subcontract or by any other time. The Contractor shall have the right, at any time, to accelerate or vary any sequence of the work, in whole or in part, without compensation to the Subcontractor except to the extent the Contractor shall be paid by the Owner for additional costs incurred by Subcontractor as a result of that acceleration or variance in sequence.

3.2 **Progress Schedule**

(a) The Subcontractor shall comply with the Project schedule as determined by Contractor and/or Owner. The Subcontractor shall establish its own progress schedule in the form of a bar chart or a critical path method (CPM) for approval by Contractor. The progress schedule shall be followed by the Subcontractor as it shall be updated from time to time and shall be used by the Contractor to evaluate the progress of the Subcontractor's Work.

(b) Subcontractor shall commence the Work upon receipt of a written notice to proceed signed by Contractor and shall thereafter prosecute the Work to be performed hereunder diligently, without interruption, and in accordance with the time and place requirements of the Project as determined and directed by Contractor, by using such means and methods of construction as will assure that the Work will be performed hereunder in accordance with the Contract Documents and to the satisfaction of the Owner and Contractor.

(c) If the Subcontractor falls behind the progress schedule then in effect, Subcontractor shall take whatever steps may be necessary to improve its progress and shall, if requested by Contractor, submit operational plans to demonstrate the manner in which the lost time may be regained. It is the responsibility of Subcontractor to maintain its schedule so as not to delay the progress of the Project or the work of other contractors, time being of the essence. If Subcontractor delays the progress of its Work or the work of other men, it shall increase the number of shifts, the days of work and/or, to the extent permitted by law, institute or increase overtime operations, all without additional cost to Contractor, in order to regain any time lost and maintain the progress schedule then in effect as approved by Contractor. Subcontractor shall also be liable for all direct and/or consequential damages suffered by Contractor as a result of the failure to timely perform.

(d) Should any portion or division of said work not be completed within the time allowed or if the Subcontractor is delayed for any reason in diligently prosecuting a portion or division of said work and the Contractor determines that said delays have or will delay any other work, the Contractor may complete said portion or division of the work and deduct the cost of said work from the compensation herein agreed upon.

3.3 **Time Extension; No Damage for Delay**

NO DAMAGES, PAYMENT, ADDITIONAL COMPENSATION, OR ADJUSTMENT OF ANY KIND, OTHER THAN THE EXTENSION OF TIME PROVIDED FOR IN SECTION 3.4, SHALL BE MADE TO THE SUBCONTRACTOR DUE TO ANY DELAYS IN THE PERFORMANCE OF ANY OF THE WORK, WHETHER OR NOT SUCH DELAYS ARE DUE TO THE FAULT OF THE OWNER, CONTRACTOR, SEPARATE PRIME CONTRACTOR, CM OR ARCHITECT/ENGINEER INCLUDING, BUT NOT LIMITED TO DELAYS CAUSED BY DESIGN DEFICIENCIES, SLOWNESS IN PROCESSING SHOP DRAWINGS, CHANGES, COORDINATION PROBLEMS, AND INTERFERENCE FROM OTHER CONTRACTORS OR VISITORS; AND THE SUBCONTRACTOR AGREES THAT AN EXTENSION OF TIME SHALL BE ITS SOLE, EXCLUSIVE AND COMPLETE REMEDY AND THAT IT SHALL ACCEPT SUCH EXTENSION OF TIME IN FULL SATISFACTION AND SETTLEMENT OF ANY AND ALL COSTS AND DAMAGES INCURRED BY REASON OF SUCH DELAYS. THE SUBCONTRACTOR AGREES TO MAKE NO CLAIM FOR DAMAGES FOR DELAY IN THE PERFORMANCE OF THIS AGREEMENT OCCASIONED BY AN ACT OR FAILURE TO ACT OF CONTRACTOR, OWNER, CM, ARCHITECT/ENGINEER, OR ANY OF THEIR

REPRESENTATIVES, AND AGREES THAT SUCH CLAIM SHALL BE FULLY COMPENSATED FOR BY AN EXTENSION OF TIME TO COMPLETE PERFORMANCE OF THE WORK AS PROVIDED HEREIN.

* Up to 6 Months of Delays allowed. 8/31/23

3.4 **Notice of Delay**

Should Subcontractor be or anticipate being delayed or disrupted in performing the Work hereunder for any reason, it shall promptly and in no event more than seven (7) days after the commencement of any condition which is causing or is threatening to cause such delay or disruption notify Contractor in writing of the effect of such condition upon the progress schedule, stating why and in what respects the condition is causing or is threatening to cause delay. Notice of delay to Contractor as set forth above is a condition precedent to an extension of the Subcontract completion time and failure to comply strictly with this notice requirement shall be sufficient cause to deny Subcontractor a change in schedule and to require it to conform to the progress schedule then in effect.

3.5 **Extension of Time**

An extension of time under the progress schedule then in effect may be granted by Contractor pursuant to the provisions hereof upon written application therefore by Subcontractor. An application for an extension of time under the progress schedule then in effect must set forth in detail the nature of each cause of delay to the performance of the Work, the date or dates upon which each cause of delay began and ended and the number of days of delay attributable to each such cause. After the application is submitted, Subcontractor shall supply any other data that Contractor may request.

3.6 **Labor Harmony**

Subcontractor shall have no right during the Project to stop and/or delay work on the Project as a result of any labor dispute or disruption, including but not limited to strikes, sympathy strikes, hand billing, demonstrations and/or picketing by a building trade union. In the event that Subcontractor delays or refuses to perform work as a result of any labor dispute or disruption, it shall be considered a material breach of the Subcontract entitling Contractor to terminate the Subcontract for cause on one (1) day's written notice. Under no circumstances shall Subcontractor be entitled to any increase in the Subcontract sum as a result of any labor dispute or disruption. Subcontractor shall hire only such workers that shall not cause labor disharmony or unrest on the Project. In the event of any such disharmony or unrest, Subcontractor, immediately or upon Contractor's request, shall cause the worker(s) who gave rise thereto to leave the Project and not to return.

ARTICLE 4

PAYMENT

4.1 **Lump Sum Price**

The Contractor and Subcontractor agree that the Subcontractor shall be paid **Two Hundred Thousand Dollars [$200,000.00]** for all of the Architectural Woodwork, including but not limited to filings, delivery, labor, materials, supplies and equipment, and other obligations to be performed hereunder by the Subcontractor, pursuant to Section 2.1, hereof.

a) Prior to commencement of the work, the Subcontractor shall prepare a schedule which shall include a dollar value of each item of work including labor and material. Upon approval of said schedule, by the Contractor, it shall be considered part of this Subcontract and

used for payment purposes only and not to be used for any other purpose.

b) The amount of each progress payment to the Subcontractor shall not exceed the percentage of completion paid to the Contractor for the work of the Subcontractor, subtracting the value of any repairs, corrections, or changes that must be made to make to work acceptable. Progress payments are not in exchange for specific portions of the work, but rather partial payments on account of the entire amount set forth in this Agreement and any progress payment shall not be deemed to be an acceptance of the work done to the date of the payment.

c) Upon demand at any time by the Contractor, the Subcontractor shall submit to the Contractor satisfactory evidence that no unpaid claims exist for labor, material or other obligations incurred by the Subcontractor in the performance of this Subcontract. Anything to the contrary herein notwithstanding, the Contractor shall have the right to defer or withhold the whole or any part of any partial or other payment if it appears to the Contractor that there are outstanding claims or that the unpaid balance of the Subcontract sum as adjusted by change orders and less retained percentages, is insufficient to complete the Work.

d) In the event any persons furnishing anything in connection with the Subcontract work herein are unpaid, or should such persons notify the Contractor of any unpaid amount thereof, the Contractor, in addition to all the rights granted herein, shall have the right to withhold such unpaid amount(s) of the claim(s) out the payments next becoming due to the Subcontractor, and the Contractor shall have the right to make payment of said unpaid amount(s) and/or satisfy said claim(s) and deduct the amounts thereof out of the next payment(s) which may become due to the Subcontractor. The Subcontractor further agrees that in the event any suit be brought by anyone against the Contractor and/or under the terms at any bonds furnished by the Contractor to the Owner, then and in that event the Subcontractor agrees to fully indemnify and hold harmless the Contractor from any and all claims, liability, costs, counsel fees, expenses, damages, penalties, interest, or judgments, by reason thereof, irrespective of whether or not the persons aforementioned had any contractual relationship with the Subcontractor. The Contractor may at its option, require the Subcontractor to furnish the Contractor with a surety company bond, satisfactory as to form, amount and surety company, to fully indemnify the Contractor against any loss or liability in connection with any of the foregoing matters.

e) All provisions as to payment shall likewise inure to the benefit of the surety or sureties on the Contractor's performance and payment bonds, if any, with the Owner.

f) It is further mutually agreed between the parties hereto that no payment made hereunder including the final payment, shall be evidence of the performance of this contract, either wholly or in part, against any claim of the Contractor, and no payment shall be construed to be an acceptance of any defective work or as a waiver of any of the provisions of this contract.

ARTICLE 5

METHOD, SCHEDULE AND TERMS OF PAYMENT

5.1 Partial Payment

In accordance with requisitions submitted and approved as provided below for Work performed in accordance with this Agreement, Subcontractor shall be entitled to partial payment in an amount equal to the Work completed and acceptable to Contractor and Owner, less a retainage equal to five (5%) percent of the amount so computed. Partial payment shall constitute advances against the Contract until final payment is made and accepted. No partial payment made, nor approval of a portion of the Work given for purposes of making a partial payment, shall constitute an acceptance of any work not in accordance with the Contract Documents.

5.2 **Performance Bond and Payment Bond – [NOT APPLICABLE]**

Subcontractor shall provide performance and payment bonds from a treasury listed surety authorized to do business in the State of New York. Each bond shall be for a penal sum equal to the subcontract price as set forth in Article 4.1. Subcontractor acknowledges that the premium for said bonds is included in the Subcontract price OR Subcontractor shall not be required to furnish or provide a payment or performance bond, but in consideration for eliminating this requirement, the Subcontractor specifically agrees that all payments due to the Subcontractor shall be subject to a ten percent (10%) retainage on all payments notwithstanding that the Overall Contract may require lesser amounts to be retained. In the event that the Contractor shall be required to reduce the retainage percentage, the Subcontractor shall immediately furnish an acceptable surety or other undertaking for the retainage amounts that have been reduced to insure full compliance with this Subagreement and to ensure that all of the Work under this Subagreement is completed.

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5.3 **Requisitions**

Applications for partial payments ("Requisitions") and application for final payment ("Final Requisitions") shall be submitted by Subcontractor to Contractor using AIA Form G702 and G703 for the approval of Contractor. Each Requisition shall be supported by such data substantiating Subcontractor's right to payment as Contractor may require or as may be required under the Contract Documents. Failure to provide required or requested data, information or other inputs shall be cause to delay the processing of the payment request. All required input data shall be certified by a Corporation Officer as to accuracy and correctness. Any discrepancies in any data elements submitted and certified shall be deducted from the requisition pending. Corrections of data elements shall be resubmitted in the next payment requisition for consideration of reimbursement.

5.4 **No Increases in Material or Labor Prices**

The parties are aware of the possibility of increases in the prices of labor and materials necessary to perform this Subcontract or the difficulty in obtaining them. No claim shall be made by the Subcontractor for an increase in the Subcontract price even if it is necessary to obtain materials from local warehouse stocks, or otherwise, in order to perform within the Subcontract time. The Subcontract price is not predicated on obtaining materials from any particular or usual source of supply unless specifically so stated in this Subcontract. In arriving at the Subcontract price, Subcontractor has taken into full consideration all risks of increase in the price of the labor and materials for any reason whatsoever, including, without limitation: strikes; forced or voluntary agreements between employer and employee; present or future federal, state, or municipal regulations, enactments, statutes, or decrees; present or future building codes. It is further understood and agreed that the amount of this Subcontract shall not be increased on account of any changes in costs of any materials or labor and or on account of existing taxes, or any taxes which may be imposed hereafter by Federal, State or City Governments during the life of this Agreement.

5.5 **Payment for Stored Materials**

If approved in advance by Contractor and Owner, payments will be made for materials not incorporated in the Work but delivered and suitably stored at the Site. Such payments shall be conditioned upon submission by Subcontractor of bills of sale or other supporting documentation satisfactory to Contractor to establish Subcontractor's title to such materials, including applicable insurance and transportation to the Site for those materials stored offsite.

5.6 **Releases of Liens and Claims**

a) With each Requisition, Subcontractor shall furnish its certified affidavit of payment and waiver of lien for Work done and materials furnished through the date covered by

the last preceding partial payment and shall furnish its affidavit certifying that all subcontractors and materialmen have been paid for Work performed and materials furnished through such date except for any permitted retainage. Contractor may also require Subcontractor to attach to each Requisition: (i) affidavits of payment and waivers of lien from all subcontractors and materialmen dealing directly or indirectly with Subcontractor for such Work performed and materials furnished where the amount involved exceeds $1,500.00 and (ii) the consent of the surety issuing the Payment and Performance Bonds to such payment, if applicable. Contractor may require Subcontractor to execute a waiver of lien at the time payment is made for a Requisition for all Work performed through the date of the Requisition in respect of which payment is being made.

b) In addition to the documents required to be furnished in the immediately preceding paragraph, Subcontractor shall furnish: (1) its affidavit that there are no liens, claims or demands by, and that there is no indebtedness to, subcontractors, materialmen, laborers, other employees or third persons for which Contractor might in any way be responsible and (2) releases from Subcontractor and all subcontractors and materialmen dealing directly or indirectly with Subcontractor covering all claims, including change orders and delays, through the last date covered by the Requisition. Said releases shall not constitute a receipt for payment. Should any such subcontractor or materialman fail or refuse to furnish such release, Subcontractor may be required to furnish a bond satisfactory to Contractor to indemnify it against any such lien, claim or demand. If any such lien, claim or demand remains unsatisfied after all payments are made, Subcontractor shall refund to Contractor monies that the latter may be compelled to pay in discharging such lien, claim or demand including all costs, expenses and attorneys' fees which Contractor may incur in connection therewith.

5.7 **Time of Payment**

Requisitions shall be submitted by Subcontractor to the Contractor's Project Manager by the First day of each month for the Work completed to the end of the prior month for Contractor's approval. Progress Payments to the Subcontractor for satisfactory performance of the Subcontractor's Work shall be made no later than fifteen (15) days after receipt by the Contractor of payment from the Owner for such Subcontractor's Work.

5.8 **Reduction of Retainage**

Upon the issuance of a Certificate of Substantial Completion, Subcontractor may submit a Requisition requesting a reduction of retainage in an amount equal to one half the amount retained, if it exceeds the value of the work on any punchlist as determined by Contractor. Reduction of retainage until final payment hereunder shall be within the sole discretion of Contractor and Owner.

5.9 **Final Payment**

(a) The final balance due Subcontractor under this Agreement shall be payable by Contractor to Subcontractor, as final payment hereunder, within thirty (30) days after all of the following have taken place:

(1) Upon inquiry of Contractor, Subcontractor shall have available all records pertaining to payroll documentation, including canceled payroll, taxes and benefits checks. The Contractor also agrees that should it failed or refused to disclose and make available such records, the Contractor is hereby authorized to deduct from the Subcontractor's account an amount equal to the cost of any investigation related to non-payment of prevailing wages by the Subcontractor or its sub-subcontractor(s), and to assure payment to any persons supplying materials for the work;

(2) Final inspection of the project work and approval has been issued by the

Owner and all punch list items have been corrected.

(3) The Certificate of Completion has been delivered to Contractor;

(4) Subcontractors' Final Requisition has been submitted by Subcontractor and approved;

(5) The affidavit provided for in Section 5.6 hereof has been submitted by Subcontractor, and any other documents or action expressly specified in the Contract Documents as preconditions to final payment have been submitted or completed and

(6) Any inspections or approvals with respect to any of the Work that is legally required or appropriate by the Owner, other governmental authorities or by the applicable Board of Fire Underwriters have been performed or obtained, unless waived by Owner.

(7) All guaranties and warranties, for the times specified in the Contract Documents, have been fully executed by the Manufacturer[s] and fabricators and delivered to the Contractor.

(8) All spare parts have been marked and delivered to the Contractor with inventory sheets.

(9) Final acceptance by the Owner.

(10) Receipt of final payment from Owner.

(b) The acceptance by the Subcontractor of final payment shall operate as a full and complete release of the Contractor from any and all claims, demands, or causes of action whatsoever which the Subcontractor has or may have by reason of any matter arising from or connected to this Subcontract or the prime contract.

5.10 **Consent of Surety**

Notwithstanding any other provision of this Agreement, before final payment shall become due pursuant hereto or before reduction of retainage, Subcontractor shall submit to Contractor a consent of surety, if any, to final payment or reduction of retainage in a form and substance acceptable to Contractor.

5.11 **Contractor's Right to Audit and Inspect Records**

Subcontractor shall maintain and shall keep available to Contractor for a period of at least three years after the date of final acceptance of the Work all Project and labor records and other data relating to the Work. Contractor or its designee also shall have the right to inspect and audit all Project and labor records and other data of Subcontractor relating to the Work at any time during the performance of the Project and from time to time thereafter until the end of such three-year period. Subcontractor shall promptly respond to any inquiries of Contractor or any representative arising out of any such inspection or audit.

5.12 **Withholding of Payments**

(a) Contractor may withhold payment, or, because of subsequently discovered evidence, may nullify the whole or any part of any previously approved Requisition to such extent as may, in the judgment of Contractor, be necessary

(1) to assure payment of claims or liens of any persons supplying labor or materials for the Work;

(2) to protect Contractor from loss due to defective Work or to reimburse Contractor for fines on account of noncompliance with applicable laws, rules and regulations, including OSHA;

(3) to protect Contractor from loss due to death or injury to person or damage to the Work or damage to the property or work of Contractor, other contractors or others to the extent of Subcontractor's fault; if not covered by Subcontractor's insurance.

(4) in the event that there is reasonable evidence that the Work will not be completed;

(5) in the event that there is reasonable evidence that the work will not be completed within the time provided; or

(6) in the event that Subcontractor persistently fails to perform the Work in accordance with the Contract Documents.

(7) to assure payment of wages, taxes and/or benefits.

(8) In any of such events, Contractor shall have the right to apply any such amounts so withheld in such manner as Contractor may deem proper to satisfy such claims, to secure such protection, complete the Work or to compensate Contractor for any loss suffered by reason of Subcontractor's delay. Such application shall be deemed payment for the account of Subcontractor. Contractor shall be entitled to withhold amounts due under other contracts between the parties in the event that there are insufficient funds remaining under this Subcontract.

(b) The provisions of this Section 5.12 are solely for the benefit of Contractor, and any action or non-action by Contractor shall not give rise to any liability on the part of Contractor.

ARTICLE 6

SUBCONTRACTOR

6.1 Superintendence by Subcontractor

Subcontractor shall employ a full-time competent Construction Superintendent or Project Manager in charge of the Work approved by Contractor. The Construction Superintendent shall devote full time to the Work, shall be present at the Site during the time the Work is required to be performed and shall have full authority to accept instructions, make decisions and act for the Subcontractor at all times. Any communication to or from the Superintendent or Project Manager in charge of the Work shall be as binding as if given to or received from the Subcontractor itself. The Subcontractor shall furnish a competent representative, who is to be kept constantly on the site to represent the Subcontractor for the purpose of received notices, orders, and instructions. The Subcontractor shall also, when called upon by the Contractor, report in writing the general progress of the work at the building or elsewhere and shall cause a competent and responsible representative to attend such job meetings as are called by the Contractor. Job meetings will be held upon twenty-four (24) hour notice. Subcontractor must have an authorized representative to attend each meeting.

6.2 Representations and Warranties

Subcontractor represents and warrants that:

(a) Subcontractor is financially solvent and is experienced in, and competent to perform, the Work;

(b) Subcontractor is familiar with all Federal, State, City or other laws, ordinances, orders, rules and regulations related to the Work;

(c) any temporary and permanent Work required by this Agreement can be satisfactorily constructed, and that such construction will not injure any person or damage any property; and

(d) Subcontractor has carefully examined the Contract Documents and the Site and, from Subcontractor's own investigations, is satisfied as to the location of the Work, the character, quality and quantity of surface and other facilities needed for the performance of the Work, the general and local conditions, and all other conditions or items which may affect the work.

6.3 **Verifying Dimensions and Site Conditions**

a) Before proceeding with the Work, Subcontractor will accurately check all previous and surrounding work and determine the correctness of the same; failure on its part to detect or report discrepancies will relieve Contractor of liability from any and all claims to recover cost, expense, loss or damage resulting therefrom. Subcontractor shall take, determine, investigate and verify all field measurements, dimensions, field construction criteria, Site and information contained in the Contract Documents.

b) Subcontractor shall be responsible for determining the exact location of and to verify the spatial relationships of all Work. Consistent with Section 2.3 and before proceeding with the Work, if any conflicts are found in the Contract Documents or if Subcontractor has any questions concerning the foregoing, it shall immediately notify Contractor and shall thereafter perform the Work in accordance with the directions of Contractor.

6.4 **Meetings**

Subcontractor shall attend all meetings attended by a responsible official, as directed by Contractor, and shall be represented at such meetings by a person having knowledge of the Work and authorized to act for Subcontractor at all times.

6.5 **Related Work**

Subcontractor shall examine the Contract Documents for related work to ascertain the relationship of such work to the Work under the Contract Documents.

6.6 **Surveys and Layout**

Subcontractor shall furnish benchmarks and monuments of the property necessary for the Work. Subcontractor shall lay out the Work.

6.7 **Compliance with Labor Law and Certified Payroll**

a) In the event the prime contract is with a Municipal Agency subject to Section 220 of the Labor Law, the Subcontractor agrees to pay all its employees, working on the job site, wages and benefits required under Section 220 of the Labor Law and the prime contract. In the

event any claim is made by any of the Subcontractor's employees or anyone else, that the prevailing wages were not paid, the Contractor may withhold from the Subcontractor out of payments due, any amount sufficient to pay the employees the difference between the wages and supplements required to be paid by the Labor Law and the wages and supplement actually paid plus interest as provided in the Labor Law.

b) In the event any claim is made against the Contractor for underpayment of prevailing wages to the Subcontractor's employees, the Subcontractor shall indemnify and save harmless the Contractor and its surety for any loss in connection with such claim or resulting action including all attorneys' fees. The person who executes this Subcontract on behalf of the Subcontractor personally guarantees all provisions of this Article.

c) Subcontractor is required to submit to the Contractor every week the following item(s): **Two (2) original and (1) copy of CERTIFIED PAYROLL REPORTS attached with RELEASE ACKNOWLEDGMENT FORM signed by each and every worker stating that prevailing wages and related benefits were paid in full.** CERTIFIED PAYROLL REPORTS MUST BE COMPLETED IN BLUE INK WITHOUT ERRORS (correction fluid is unacceptable). PAYROLL REPORTS must be signed, dated and notarized.

d) Failure to provide the correct certified payrolls in a timely manner will delay Subcontractor's payment and the continued failure to do so will result in Subcontractor's immediate dismissal from the project.

e) Contractor shall have the right to request from Subcontractor any other additional information or documentation in respect to Subcontractor's payroll for this Project, including but not limited to payroll ledgers, union ID cards, OSHA 10 cards, social security cards, cancelled checks, W-2's, U.S. tax form 940, U.S. tax form 941 and union remittance reports to insure the proper payment of wages, taxes and benefits.

6.8 **Rubbish Removal** - *Centerpile Only 8/31/23 10/6/23

Subcontractor shall at its own cost and expense, remove and dispose of all debris and rubbish created by its Work on a daily basis. The Subcontractor shall collect and deposit debris in an area designated by Contractor. Should the Subcontractor fail to collect and so deposit same within twenty-four (24) hours after receiving notice from the Contractor, then the Contractor may collect and deposit the same and charge the cost and expense of such removal to the Subcontractor.

6.9 **Failure to Perform**

Subcontractor agrees to be liable for all reasonable attorneys' fees and expenses incurred by Contractor arising out of Subcontractor's performance or failure to perform the Subcontract Work.

6.10 **Rules and Regulations**

All regulations and rules of the Contractor or Owner which may be in effect at the site of the project regarding employment, passes, badges, and conduct on the property shall be observed rigidly by the Subcontractor, its personnel, and its employees. The Subcontractor shall remove from the project any employee not satisfactory to the Contractor or Owner.

ARTICLE 7

INSPECTION AND ACCEPTANCE

7.1 **Access to the Work**

Owner and Contractor or their authorized representatives shall at all times have access to and the right to observe the Work and all facilities where the Work or any part thereof is being fabricated or stored, and Subcontractor shall provide proper facilities for such access and observation.

7.2 **Required Inspection and Test**

If the Contract Documents, or any laws, rules, codes, ordinances or regulations, require that any Work be inspected or tested, Subcontractor shall give Contractor timely notice of readiness, not less than three (3) business days, that the Work is fully completed and ready for inspection or testing and the date fixed for such inspection or testing. Neither Contractor nor Owner shall be obligated or bound to inspect the work of the Subcontractor on the day designated by the Subcontractor for any inspection or testing. Subcontractor shall be required to attend all inspections and tests at no additional cost to Contractor or Owner.

7.3 **Correction of Work**

Any Work not approved by Contractor or Owner shall immediately be reconstructed, made good, replaced or corrected by Subcontractor including all Work of other contractors destroyed or damaged by such reconstruction, correction or replacement. Rejected material shall be removed immediately from the Site. Acceptance of material and workmanship by Contractor shall not relieve Subcontractor from Subcontractor's obligation to replace all Work which is not in full compliance with the Contract Documents.

ARTICLE 8

CHANGES IN THE WORK

8.1 **Change Orders**

(a) Contractor at any time, in any quantity or amount, without notice to the sureties and without invalidating or abandoning the contract, may add or delete, modify or alter the Work to be performed under this Agreement including, without limitation, ordering Changes or Extra Work. Subcontractor shall not perform any change in the Work unless it has received a Change Order or Field Order duly signed as hereinafter provided. Subcontractor shall be obligated to perform changed work promptly in conformity with any Change Order issued in accordance therewith. **Where the Contractor does not acknowledge that the Work in question is Extra or Additional Work or a change in Work requiring additional compensation, the Subcontractor shall not cease work but shall perform said work as directed by the Contractor, in writing.**

(b) All Change Orders shall be prepared, signed and issued through the Contractor. Change Orders will provide for signature and acceptance by Subcontractor, but such signature is not required for the effectiveness of any Change Order. Subcontractor shall perform said Change Order work as directed by Contractor.

(c) Whenever the Subcontractor believes that it is or will be entitled to additional compensation for Extra Work, it must provide Contractor with written notice of the claimed extra work within ten (10) work days after the Subcontractor has knowledge or should have knowledge of the event giving rise to the Extra Work.

(d) Contractor shall have no liability and no adjustment will be made for any change order which accrued more than ten (10) days prior to the filing of such a notice with the Contractor. Failure of the Subcontractor to give such notice in a timely fashion will be grounds for denial of the change order and the Contractor does not have to show prejudice to its interest

before such denial is made. Strict compliance with this notice requirement shall be an essential condition precedent to any recovery by the Subcontractor in any Court action or other legal proceeding.

(e) After giving Contractor notice of the claimed Extra Work, Subcontractor must keep daily records of all labor, material and equipment costs and hours incurred in connection with the claimed Extra Work and provide Contractor with copies of same on a daily basis. Strict compliance with this record keeping requirement shall be an essential condition precedent to any recovery by the Subcontractor in any Court action or other legal proceeding.

(f) In the event of a dispute concerning Subcontractor entitlement to a change order resulting from instruction by or circumstances created by the Owner, Subcontractor shall be required to follow any dispute resolution procedures set forth in the Prime Contract and shall be bound by any determinations made thereunder. No claim shall be made by Subcontractor on Contractor's payment bond for any dispute covered by an alternate dispute resolution procedure unless it results in an award or judgment against Contractor.

(g) In connection with any disputes and/or claims pursuant to Article 8.1(f), Contractor agrees to allow the Subcontractor to prosecute its claims under a mutually agreed liquidating agreement and pursuant to the provisions of the Contract Documents or as otherwise provided by law for the prosecution of such claims. Subcontractor shall promptly notify Contractor in writing of its desire to prosecute its claim under a liquidating agreement. It shall be Subcontractor's sole responsibility to ensure that any dispute or claim is commenced timely and that all conditions precedent have been met. Under no circumstances shall Contractor be liable for Subcontractor's failure to comply with any provision of this Subcontract or the Prime Contract which precludes the prosecution of any dispute or claim against the Owner. The Subcontractor shall bear all costs and expenses, including legal fees, associated with the pursuit of any claim and/or dispute under the terms of the Contract Documents.

(h) All Change orders, and any subsequent modifications, changes, additions or deletions, must be in writing and signed by an authorized representative of Contractor. This Subcontract provision may not be modified orally. The Subcontractor understands that it is not entitled to rely upon the oral direction of any persons employed by the Contractor. The Subcontractor further understands that it is not entitled to rely on the written or oral direction of the Owner or any other persons, absent written direction from Contractor. Any work done without the written approval of an authorized representation of Contractor shall be at the sole risk of the Subcontractor and without any further liability of the Contractor for any payment thereof.

(i) The amount to be paid for any Changes or Extra Work shall be determined by the methods set forth in the Prime Contract. In the event that the Prime Contract does not provide specific methods, the parties shall negotiate a mutually acceptable price based on the actual cost of performing the work in question.

ARTICLE 9

SUBCONTRACTS AND PURCHASE ORDERS

9.1 Selection of Subcontractors and Materialmen and Approval of Subcontracts and Purchase Orders

(a) Upon written request from Contractor, Subcontractor shall disclose to Contractor, in writing, names of all subcontractors and materialmen with whom it has contracted, or intends to contract, or thereafter contracts with respect to the Work.

(b) Any subcontractors or materialmen who are to be paid for labor or materials an amount whose total payments are in excess of $10,000.00 shall be subject to approval by Contractor. Contractor may approve or disapprove any such subcontractor or materialman. Subcontractor shall submit such information as Contractor may request.

(c) If requested, Subcontractor shall submit to Contractor promptly following execution, one copy of each of every subcontract and a copy of every revision, amendment, modification or cancellation executed or issued by Subcontractor with respect thereto. Contractor is not obligated to make payment on account of Work performed or materials furnished by a subcontractor or a materialman under a subcontract or purchase order unless there shall have been filed with Contractor prior to the submission of a Requisition for each payment, one copy each of such subcontract containing the provisions required by this Agreement to be contained therein, except as may otherwise be specified by Contractor with respect to purchase orders for minor purchases.

ARTICLE 10

ASSIGNMENT

10.1 No Assignment of Duties

Subcontractor shall not assign or sublet this Agreement or the performance of any obligations of Subcontractor under this Agreement other than to a subcontractor or materialman in compliance with Article 9 hereof and the written consent of Contractor; and each and every such assignment, order and subcontracting without such compliance or consent shall be void and shall vest no right of action in the assignee against Contractor.

10.2 No Assignment of Monies

Subcontractor shall not assign any monies payable hereunder, nor execute and deliver any order on payment.

10.3 Assignment by Contractor

This Agreement or any rights of Contractor under this Agreement, including any guarantees or warranties of workmanship or material, may at any time be assigned by Contractor.

ARTICLE 11

MECHANICS' LIEN AND CLAIMS

The Subcontractor agrees that all materials incorporated by him in the building and all materials delivered by him at the premises for incorporation in the building shall be free of any and all liens, claims, chattel mortgages and conditional sales agreements of third parties. The Subcontractor further agrees that any monies he shall receive in payment for work performed under this Contract shall be received in trust and used to discharge its financial obligations with respect to such work. The Subcontractor will furnish a Waiver of Lien in such form as directed by the Contractor, completely filled out and properly executed after each and every payment made to the Subcontractor. The Subcontractor further agrees that if any subcontractor holding a subcontract from him or any materialman supplying materials to him or any one claiming by or through such subcontractor or materialman shall file or cause to be filed any lien, the Subcontractor will, upon notice from the Contractor, cause such lien to be cancelled and

discharged within ten (10) days from such notice, and in the event of the Subcontractor's failure to do so, the Contractor shall have the right to cause such lien to be cancelled and discharged, and in that event any expense, damages or judgments so incurred by the Contractor, including the premiums upon any bond furnished for such cancellation and discharge and reasonable attorney's fees, shall be paid by the Subcontractor, or at the option of the Contractor, shall be deducted from any payment then due or thereafter becoming due from the Contractor to the Subcontractor. Subcontractor shall promptly pay to the Contractor all monies that the Contractor may be compelled to pay in discharging any lien or claim on said premises caused by the default or failure to pay of Subcontractor. In the event of any breach by the Subcontractor of any of the terms of this Article of this Agreement, the Contractor shall have the option to terminate this Agreement. Said right shall be cumulative and shall be in addition to any other rights and remedies herein or otherwise by law given to the Contractor.

ARTICLE 12

INSURANCE

12.1 **Insurance**

(a) Subcontractor shall procure and maintain all of the insurance required pursuant to and in accordance with Rider No. "5" of this Agreement annexed hereto and in accordance with the Prime Contract, until final acceptance of the Work.

(b) To the fullest extent permitted by law, the Subcontractor agrees to indemnify, defend and hold harmless the Contractor as well as parties listed below as additional insureds, their officers, directors, agents employees and partners (hereafter collectively "Indemnitees") from any and all claims, suits, damages, liabilities, professional fees, including attorneys' fees, costs, court costs, expenses and disbursements related to death, personal injuries or property damage (including loss of use thereof) brought against any of the Indemnitees by any person or entity, arising out of or in connection with or as a result or consequence of the performance of the Work of the Subcontractor, as well as any additional work, extra work or add-on work, whether or not caused in whole or in part by the Subcontractor or any person or entity employed, either directly or indirectly by the Subcontractor including any subcontractors thereof and their employees. The parties expressly agree that this indemnification agreement contemplates: (1) full indemnity in the event of liability imposed against the Indemnitees without negligence; and (2) partial indemnity in the event of any actual negligence on the part of the Indemnitees either causing or contributing to the underlying claim which negligence is expressly accepted from the Subcontractor's obligation to indemnify. Attorneys' fees, court costs, expenses and disbursements shall be defined without limit to include those fees, costs, etc. incurred in defending the underlying claim and those fees, costs, etc. incurred in connection with the enforcement of this Subcontract Agreement. Indemnification under this Agreement shall operate whether or not Contractor has placed and maintained the insurance required under this agreement. The Subcontractor shall cause all subcontract agreements it enters into to include this indemnification clause so as to ensure that Contractor and all Indemnitees hereunder shall have the same protection from sub-subcontractors as is afforded by the Subcontractor.

(c) If an action for bodily injury and/or property damage is commenced against the Owner and/or Contractor, which is covered by the indemnity provision herein, Subcontractor shall, upon written request, promptly cause Subcontractor's insurance carrier to have its attorneys appear timely in the action on behalf of Owner and/or Contractor and provide the defense of Owner and/or Contractor.

(d) The Subcontractor shall cause any insurance policy obtained by him to provide that the insurance company waives all right of recovery by way of subrogation against the Owner or Contractor or any subcontractor in connection with any damage covered by any policy. The Owner and/or Contractor shall not be liable to the Subcontractor, its employees,

servants, agents or lower tier subcontractors for any damages caused by fire or any of the risks insured against under any insurance policy required by this Subcontract.

12.2 **Effect of Procurement of Insurance**

Neither the procurement nor the maintenance of any type of insurance by Subcontractor, Owner or Contractor shall in any way be construed or be deemed to limit, discharge, waive or release Subcontractor from any of the obligations and risks impressed upon Subcontractor by this Agreement or to be a limitation on the nature or extent of such obligations and risks.

ARTICLE 13

TERMINATION, SUSPENSION AND DELETION OF WORK

13.1 **Termination for Cause**

It being expressly understood that time is of the essence, should the Work not be completed within the time allowed or should the Subcontractor at any time refuse or neglect to supply a sufficient number of skilled workmen or materials or in any respect fail to prosecute the work with promptness or diligence or fail in the performance of any of the agreements on its part contained herein, or become insolvent, the Contractor may declare the Subcontractor in default, terminate this contract and have all remaining work completed by others and the Subcontractor shall be liable for any and all damages sustained by the Contractor thereby and the Subcontractor shall be entitled to no further compensation whatsoever in the event this contract is terminated.

(a) Subcontractor may also be terminated for cause if any of the following events shall occur (an "Event of Default"):

(i) Subcontractor shall violate any substantial provision of this Agreement;

(ii) Contractor in good faith determines that Subcontractor is performing in a manner which might delay the completion of the Work under this Subcontract or the prime contract;

(iii) Subcontractor furnishes defective material or does faulty work;

(iv) Subcontractor fails to make timely payment for labor and material it uses to perform this Subcontract;

(v) Before completing the work under this Subcontract, Subcontractor becomes involved in legal proceedings which, in the sole judgment of the Contractor, threaten to materially affect the performance of the Subcontractor;

(vi) any material adverse change shall take place in the financial condition of the Subcontractor; or

(vii) any action shall be taken by Subcontractor which would result in Subcontractor becoming the subject of any insolvency or bankruptcy proceeding, then Contractor may serve written notice upon Subcontractor terminating or partially terminating this Agreement at a specified date. The term "insolvency proceeding" as used herein shall include the consent, acquiescence or taking of any action by Subcontractor, or the filing by or against Subcontractor of any petition or action, looking to or seeking any reorganization, arrangement, composition, readjustment, liquidation, dissolution, or similar relief under any other present or future federal or state statute, law or regulation; or the appointment, with or without the consent of Subcontractor, of any trustee, custodian, receiver or liquidator of Subcontractor or any

property or assets of Subcontractor; or if Subcontractor shall make an assignment for the benefit of creditors or shall be unable to pay its debts as they become due.

(b) Upon the occurrence of an Event of Default, at Contractor's option, title to any or all Subcontractor's material[s], work in process, which are necessary or useful in completing the Work, shall vest in Contractor and Contractor may take possession of and utilize the same for completion of the Work; provided that title to such items shall revert to Subcontractor upon effectuation of a cure of the Event of Default prior to the termination of this Agreement.

(c) Upon complete or partial termination of this Agreement, Contractor shall have the right, in addition to all other rights and remedies, to complete or have the Work completed by such means it deems necessary for timely completion of the Project. Contractor may deduct any cost it incurs thereby, including attorneys' fees, from any payment then or thereafter due to Subcontractor without prejudice to any other remedy Contractor may have. In the event that Subcontractor's contract balance is insufficient to cover the completion costs incurred by Contractor, Subcontractor shall pay the difference to Contractor. Subcontractor agrees to be liable for all attorney's fees and expenses incurred by Contractor to collect completion costs.

13.2 **Termination for Convenience of Contractor**

(a) Contractor, at any time, may terminate this Agreement in whole or in part for its own convenience. Any such termination shall be effected by delivering to Subcontractor a notice of termination specifying the extent to which performance of Subcontractor's Work under the Contract is terminated and the date upon which such termination becomes effective. Upon receipt of the notice of termination, Subcontractor shall:

(i) Stop work under this Agreement on the date and to the extent specified in the notice of termination;

(ii) Place no further purchase orders or subcontracts for materials, services or facilities except as may be necessary for completion of such portion of the Work under this Agreement as is not terminated;

(iii) Unless directed otherwise by Contractor, terminate all purchase orders and subcontracts to the extent that they relate to the performance of Work terminated by the notice of termination;

(iv) Assign to Contractor, all of the right, title and interest of Subcontractor under the purchase orders and subcontracts so terminated, in which case Contractor shall have the right, in its sole discretion, to settle or pay any or all claims arising out of the termination of such purchase orders and subcontracts;

(v) Transfer title to Contractor and deliver in the manner, at the time, and to the extent, if any, directed the fabricated or unfabricated parts, work in process, completed work, supplies, and other material produced as a part of, or acquired in connection with the performance of, the Work terminated by the notice of termination.

(vi) Complete performance of such part of the Work as shall not have been terminated by the notice of termination.

(b) In the event of a termination of this Agreement pursuant to this Section, Subcontractor shall be paid by Contractor, only the apportioned costs incurred by Subcontractor and arising out of said termination. Contractor shall have no liability for lost profit or overhead on any unperformed Work.

(c) The Contractor shall have the further right, in event of termination of the prime

contract for any cause, at any time, to terminate this Subcontract and require the Subcontractor to cease work thereon. The Subcontractor shall receive payment only for its work based upon the dollar value or percentage of completion as paid for by the Owner. The Subcontractor shall receive the same dollar value or percentage of its Subcontract price as the Contractor receives from the Owner for the Subcontractor's work.

13.3 **Suspension of Work**

Contractor may at any time and for any reason direct Subcontractor to suspend, stop or interrupt the Work or any part thereof. Such direction shall be in writing and shall specify the period during which the Work is to be stopped. Subcontractor shall resume the Work upon the date specified in such direction or upon such other date as Contractor may thereafter specify in writing. The period during which the Work shall have been suspended, stopped or interrupted may, if warranted, be added to the time fixed for performance. A suspension, stoppage or interruption of the Work pursuant to this provision shall not give rise to any claim against Contractor for additional compensation.

13.4 **Deletion of Work**

Contractor at any time, in any quantity or amount, without notice to the sureties and without invalidating or abandoning the Subcontract, may at its sole discretion delete, modify or alter the Work to be performed under this Agreement. Regardless of the quantity or amount of work deleted, modified or altered, under no circumstances shall such deletion, modification or alteration be deemed to constitute a change to the Subcontract which alters the essential identity of the main purpose of the Subcontract. Any credit for the value of the work deleted shall be determined by mutual agreement of the parties.

ARTICLE 14

PROTECTION OF RIGHTS, PERSONS AND PROPERTY

14.1 **Accident Prevention**

The Subcontractor agrees that the prevention of accidents to workmen engaged in work on or in the vicinity of the project site is its responsibility. Subcontractor shall at all times take every precaution against injuries to persons or damage to property and for the safety of persons engaged in the performance of the Work and shall comply with Safety Plans pertinent to the Project site, and all City, County, State, Federal Safety and OSHA requirements, rules and regulations. When so ordered, Subcontractor shall stop any part of the work which Contractor deems unsafe until corrective measures satisfactory to Contractor have been taken. Subcontractor agrees that it shall make no claim for time lost during such safety stoppages of work. In the event of an accident, Subcontractor shall notify Contractor within (24) hours of the injury suffered and provide a written description of same. Subcontractor agrees to indemnify and hold Contractor harmless from all claims, actions, fines or penalties, including attorneys' fees expended in connection therewith, incurred as a result of any safety issue.

14.2 **Safety Programs**

Subcontractor shall be responsible for the initiation, maintenance and supervision of safety precautions and programs in connection with the Work and shall integrate his safety program with the Contractor and all other subcontractors working on or located at the project site. Subcontractor shall hold weekly safety ("Tool Box") meetings and shall provide copies of minutes of such meetings to Contractor within five (5) working days. Subcontractor agrees to reduce the Subcontract Price by $250.00 for each occurrence when an employee of Subcontractor is on the job site and not wearing a hard hat or required eye protection, PPE, or

is not properly using any other safety protection required by the nature of the work. Any employee of Subcontractor who is responsible for more than two (2) such infractions shall be removed from the project.

14.3 **Protection of Work and Property**

(a) Subcontractor shall at all times guard Contractor's and the Owner's property from injury or loss in connection with the Work. Subcontractor shall at all times guard and protect the Site, the Work and adjacent property. Subcontractor shall replace or make good any such loss or injury unless such loss or injury is caused directly by others.

(b) Subcontractor shall have full responsibility to install, protect and maintain all materials in proper condition and forthwith repair, replace and make good any damage thereto until Final Acceptance of the Work.

ARTICLE 15

USE OR OCCUPANCY PRIOR TO ACCEPTANCE

(a) If before final acceptance of the Work, Owner desires to use or occupy the Project or any part thereof which is completed or partly completed, or to place or install therein equipment and furnishings, they shall have the right to do so, and Subcontractor shall in no way interfere with or object to such use or occupancy, nor shall such use or occupancy give rise to a claim for additional compensation.

(b) Such use or occupancy: (1) shall not constitute acceptance of space, systems, materials or elements of the Work, nor shall such occupancy affect the start of any guarantee period and (2) shall not affect the obligations of Subcontractor for Work which is not in accordance with the requirements of this Agreement or other obligations of Subcontractor under the Contract Documents.

(c) Subcontractor shall continue the performance of the Work in a manner which shall not unreasonably interfere with such use, occupancy and operation.

ARTICLE 16

WARRANTIES AND GUARANTEES

16.1 **In General**

(a) Subcontractor guarantees that all Work performed, and all materials furnished will conform to the Contract Documents as to kind, quality, function, design and characteristics of material and workmanship. Subcontractor shall remove, replace and repair, at its sole cost and expense, all defects in workmanship, materials, ratings, capacities, or design characteristics occurring in or to the Work including, without limitation, any portion of the Work furnished or performed by any subcontractor, within one year or such longer period as may be specified in 16.2, from the date of completion and acceptance of the Project, as evidenced by the receipt of a temporary or permanent certificate of occupancy for the entire Project. In the event that Contractor is required to incur any expense relating to the correction of the Work even if such expense relates to work on the Project not performed by Subcontractor, all such expense shall be the sole obligation of Subcontractor and shall be reimbursed to Contractor upon demand, Subcontractor hereby acknowledging that Contractor may be required to incur substantial expense if correction of the Work is required. If Subcontractor shall fail to reimburse Contractor for any expense which may become payable as provided in this paragraph, Contractor

shall be entitled to deduct such expense from any payments required to be made to Subcontractor pursuant to this Agreement. Subcontractor, upon demand, shall pay for all damage to all other work resulting from such defects and all expenses necessary to remove, replace and repair such other work which may be damaged in removing, replacing or repairing such defects.

(b) The benefits of this Article 16 shall insure to the benefit of Owner, and the Contractor and their respective successors and assigns. In addition, any bond or guaranty which may be required of Subcontractor under the Contract Documents shall inure to the benefit of Owner and the Contractor and their respective successors and assigns.

(c) The rights and remedies afforded under this Article 16 are in addition to and not in lieu of and do not in any way affect, change, alter, modify, vary or prejudice any right, remedy or recourse which may be had under other provisions of this Agreement, or in the event that this Agreement or provisions therein may be found to be unenforceable or void, then the Contractor shall be entitled to seek and enforce any remedy at law or in equity as the Contractor deems sufficient and necessary to compensate and recompense the Contractor for any losses or damages incurred.

16.2 **Additional Guarantees**

In addition to the general guaranty set forth in Section 16.1, any other guarantees set forth in the Contract Documents shall be applicable.

a) Before final payment is made, the Subcontractor agrees to execute a written guarantee for its work, agreeing to make good without cost, any and all defects due to imperfect workmanship of materials, which may appear during the period of guarantee required to be given by the Contractor to the Owner, said guarantees to be in accordance with the Contract Documents.

b) All guarantees, warranties, and/or bonds of and for material and workmanship running in favor of Subcontractor shall be assigned to the Owner on or before completion of construction.

c) All guarantees received by the Subcontractor from material dealers, equipment makers, or sub-subcontractors shall be approved by the Subcontractor, the General Contractor, and the Owner, but shall be made directly to the Owner. Such guarantees, however, shall be enforced by the Subcontractor if occasion arises. If the makers of the guarantees fail to fulfill their guarantee obligations, any costs incurred by the Owner in connection therewith shall be at the sole expense of the Subcontractor.

ARTICLE 17

LIQUIDATED DAMAGES

Subcontractor acknowledges that the Prime Contract contains a liquidated damage provision and agrees to be bound by such provision. In the event that the Subcontractor shall be responsible for loss, damage and additional cost incurred at the Project by reason or on account of: (i) the unexcused delays of Subcontractor or (ii) Subcontractor's failure to fully and completely carry out the terms of this Agreement, and because it is not always possible to accurately determine the amount of such damage, and if the Contractor is delayed in the completion of the overall contract due solely or in part to the acts, omissions or failures of the Subcontractor, then the Contractor shall be entitled to establish the amount of liquidated damages [as set forth in accordance with the Contract Documents and for which he is assessed] attributable to the Subcontractor and such liquidated damages assessed against the

Subcontractor shall be in direct proportion to the Subcontractor's share of the responsibility for such delay. However, the amount of such assessment shall not exceed the amount assessed against the Contractor. Contractor shall be entitled to withhold from Subcontractor's contract price any liquidated damages which the Owner assesses or threatens to assess as a result of delays caused by Subcontractor.

ARTICLE 18

"AS BUILT" DRAWINGS

(a) Subcontractor shall furnish to Contractor one (1) set of mylar reproducible and/or sepia prints of the Drawings on which Subcontractor, where applicable, shall accurately and precisely located and dimension all of the Subcontractor's work, any adjacent work which is interfaced or abuts the Subcontractor's work and Subcontractor shall record the installation of underground utilities, concealed piping within buildings, concealed valves and control equipment and record changes in the Work. Such recording shall be kept current and include final and actual sizes as well as the location and elevation of the above by figures and offset distances in feet and inches to permanent surface improvements such as buildings, retaining walls or curbs, where applicable.

(b) After review and approval by Contractor, and return to Subcontractor, for any required changes, Subcontractor shall furnish Contractor at least two sets of the approved tracings, prints or mylar showing all Work as built to the date of such tracings, prints, or mylar.

ARTICLE 19

SHOP DRAWINGS AND SAMPLES

19.1 **Subcontractor Submittal**

(a) Shop Drawings shall be accompanied by a letter of transmittal to Contractor, who will expeditiously review and forward same to Engineer requesting approval for design conformity.

(b) Shop Drawings shall show the design, dimension[s], connections and other details necessary to ensure that the Shop Drawings accurately interpret the Contract Documents and shall also show adjoining work in such detail as required to provide proper connections with said adjoining work. Where adjoining connected work requires Shop Drawings, such Shop Drawings shall be submitted so that connections can be checked.

(c) By submitting Shop Drawings, Product Data and Samples, Subcontractor represents and acknowledges its responsibility that it has determined and verified all materials, field measurements and field construction criteria related thereto, that it has checked the Shop Drawings, Product Data and Samples for complete dimensional accuracy, that it has checked to insure that Work contiguous with and having bearing on the Work shown on the Shop Drawings is accurately and clearly shown, that the Work has been coordinated, that the equipment will fit into the assigned spaces and that it has checked and coordinated the information contained within such submittals with the requirements of the Work and of the Contract Documents. Measurements not available prior to submission of Shop Drawings shall be noted on the Shop Drawings as not available and such measurements shall be obtained and incorporated into the Shop Drawings prior to fabrication.

19.2 **Subcontractor's Responsibility**

The Architect/Engineer's review of Shop Drawings, Product Data and Samples

shall not relieve Subcontractor of responsibility for any deviation from the requirements of the Contract Documents. Subcontractor shall be responsible for the accuracy of the Shop Drawings, Product Data and Samples and for the conformity of Shop Drawings, Product Data and Samples with the Contract Documents unless Subcontractor has notified Architect/Engineer of the deviation in writing at the time of submission and has received from Architect/Engineer written notice by separate letter of the specified deviations. Architect/Engineer's review shall not relieve Subcontractor of responsibility for errors or omissions in the Shop Drawings, Product Data or Samples.

19.3 **Prior Approval of Engineer**

Work shall not be commenced until required Shop Drawings, Product Data or Samples are reviewed and approved by the Contractor and Owner except that where such work commences it shall be at the sole risk of Subcontractor.

ARTICLE 20

NOTICES

Any notice required or permitted to be given under this Agreement must be in writing and shall be deemed to have been given when delivered personally or by registered or certified mail, return receipt requested, to the party to whom the notice is given at the address found on page 1, or at a subsequently designated address.

ARTICLE 21

ADDITIONAL PROVISIONS

21.1 **Fire and Safety Precautions**

The Subcontractor shall take all precautionary measures as required by all governmental authorities having jurisdiction over the Work as well as the Contractor to prevent and correct fire causing conditions and shall conduct all operations with due regard for the avoidance of fire hazards. The Subcontractor shall comply strictly with and enforce among all workmen on the job all fire and safety regulations. Violation of any such regulations shall be cause for dismissal of the offender(s) from the Work.

21.2 **Choice of Law and Forum**

This Agreement shall be governed by and interpreted under the laws of the State of New York. This Subcontract shall be deemed to have been made and entered into in Westchester County, New York. Subject to any alternate dispute resolutions procedures which may be set forth in the Prime Contract, Subcontractor agrees that all litigation, actions or proceedings in any Court of record which involve matters directly or indirectly arising from or relating to this Subcontract shall only be filed in the Supreme Court of the State of New York, Westchester County, and Subcontractor consents to the jurisdiction and venue of that Court. Subcontractor also hereby waives personal service of any and all process issuing from any Court and consents that process may be served by certified or registered mail to Subcontractor at the address hereinabove stated and that such service shall be deemed completed within five (5) days after such mailing. The Subcontractor shall insert a provision identical to this one into all of its subcontracts or purchase orders for this Project.

21.3 **Limitations on Actions**

No action or proceeding shall lie or shall be maintained by Subcontractor against the Contractor, its Surety or Owner unless such action shall be commenced within six (6) months

after the last day of Subcontractor's Work on the Project, or, if this Contract is terminated, unless such action or proceeding is commenced within six (6) months after the date of such termination. Subcontractor acknowledges that it is expressly agreeing to limit the time to commence an action otherwise available to it by statute.

21.4 **Waiver of Remedies**

The Subcontractor acknowledges that it can be compensated adequately by money damages for a breach of the Contract which may be committed by the Contractor. The Subcontractor agrees that no default, act or omission of the Contractor shall constitute a material breach of the Contract entitling the Subcontractor to cancel or rescind the same or to suspend or abandon performance thereof; and the Subcontractor hereby waives any and all rights and remedies to which the Subcontractor might otherwise be or become entitled to because of any wrongful act or omission of the Contractor, saving only the Subcontractor's right to money.

21.5 **Modification of Agreement**

No change, modification, termination or discharge of this Agreement in any form whatsoever shall be valid or enforceable unless it is in writing and signed by the party to be charged therewith or his duly authorized representative; provided, however, that any change in or modification, termination or discharge of this Agreement expressly provided for in this Agreement shall be effective as so provided. The failure of Contractor to insist upon strict compliance with any provision of this Agreement, or to exercise any option herein conferred, shall not be construed as a waiver or relinquishment of the right of Contractor thereafter to require compliance with such provision or as a waiver of the right of Contractor thereafter to exercise such option, and such provision or option will remain in full force and effect.

21.6 **Provisions Required by Law Deemed Inserted**

Each and every provision of law and government regulation required by law to be inserted in the Contract Documents shall be deemed to be inserted therein and this Contract shall read and shall be enforced as though so included herein, and if through mistake or otherwise any such provision is not inserted, or is not correctly inserted, then upon the application of either party this Contract shall be deemed to be amended to make such insertion or correction.

21.7 **Severability**

If any one or more of the provisions of this Agreement shall be deemed to be illegal or unenforceable, such illegality or unenforceability shall not affect any of the remaining legal and enforceable provisions hereof, which shall be construed as if such illegal or unenforceable provision or provisions had not been inserted.

21.8 **Entire Agreement**

This Agreement is complete in and of itself and any and all prior agreements, understandings and communications, whether oral or written, are deemed merged herein and superseded hereby, unless specifically noted in this agreement.

IN WITNESS WHEREOF, the parties, by individuals having authority to sign on their behalf, hereby execute this Agreement as of the date first written at the beginning of this Agreement.

[SEAL]

By: _____

(NAME AND TITLE) Joseph Urbinati, Jr. MPCC Corp. President

DATE: 10/6/23

ELLI NY DESIGN CORP.

[SEAL]

By: Lissette Otero _____

(NAME AND TITLE) Chief Executive Officer

DATE: 9/05/2023

MPCC CORP.
GENERAL CONTRACTORS

RIDER NO. 1

Re: HL82BRKLN BROOKLYN ANIMAL CARE CENTER

1. Subcontractor agrees to submit with each application for partial and/or final payment, any forms required by our office or those required by the Owner.

2. The Subcontractor shall submit along with the first monthly invoice a list of all material suppliers that will be used for this project and the list must be updated if new suppliers are used.

3. All prices stated in this Agreement are firm and not subject to escalation.

4. Before final payment can be made, all insurance certificates, labor affidavits, general releases and payroll reports must be submitted to our office. A Certificate of Conformance is required for all materials provided.

5. The Subcontractor agrees to fully comply with the requirements of MPCC Corp.'s Quality Assurance Program Plan in addition to Safety requirements specified in the Contract.

6. The Subcontractor agrees to fully comply with the requirements of MPCC Corp.'s Safety Program in addition to Safety requirements specified in the contract.

~~7. No deliveries are allowed between 7:00-7:30am and 2:00-3:30pm.~~

ELLI NY DESIGN CORP.

By: _____

Lissette Olivo
Type Name:

Title: Chief Executive Officer

Date: 9/05/2023

GENERAL CONTRACTORS

RIDER NO. 2

Re: HL82BRKLN BROOKLYN ANIMAL CARE CENTER

3 Weeks 8/31/23 9/6/23

1. Within seven ~~(7) days~~ after the date of this agreement, this Subcontractor shall submit the following for approval to the Contractor.

   Electronic copies of all necessary shop drawings and product data per specification See Article 1 – Scope of Work

2. All material supplied by this Subcontractor shall conform to the specification See Article 1 – Scope of Work

3. This Subcontractor shall notify MPCC Corp. 48 Hours in advance before any material is delivered to the site and before any labor crews are to start work.

4. The person signing this Contract on behalf of the Subcontractor hereby personally guarantees all terms and conditions of the Subcontract and the performance of same and certifies that they have the authority to bind the subcontractor they are representing.

5. This agreement is subject to the approval of the Owner and is to be executed by the Subcontractor and returned for further processing within three (3) days of its receipt or it is subject to cancellation by the Contractor.

ELLI NY DESIGN CORP.

By: _____

Lissette Olivo

Type Name:

Title: Chief Executive Officer

Date: 9/05/2023

MPCC CORP.
GENERAL CONTRACTORS

RIDER NO. 3

Re: HL82BRKLN BROOKLYN ANIMAL CARE CENTER

Subcontractor agrees that they, their employees, agents, or any party associated with them, will have no direct contact in any form with the project's Architects, Engineers, Owners or their representatives without the authorization of the Contractor.

With respect to this provision, **Subcontractor** hereby consents and agrees to indemnify and save harmless the Contractor from any and all manner of claims or suits, including all costs and expenses that may arise, as a result of such contact.

It is also the responsibility of **Subcontractor**, et al to immediately direct all contact initiated by the aforementioned Architect etc. to the Contractor's representatives.

The Contractor reserves the right to void this agreement due to any violation of this provision and, any expenses incurred as a result shall be deducted from this agreement and, should the amount or balance due on said agreement be insufficient, to collect said deficiency by legal process.

It is the obligation of **Subcontractor** to provide the Contractor with the names of their Subcontractors and Suppliers, at all tiers that are involved in the project. **Subcontractor** and all such other concerned parties are required to complete partial and final waivers of liens as required by the Contractor. No tier Subcontracting will be permitted without the prior acceptance and approval of MPCC Corp.

It is the intent of this agreement to provide complete items of each outlined work item, and the substance of this agreement does not therefore limit the scope of any item but, rather ensures the intent of fully functional systems unless specific exclusions are indicated.

All required submittals are due within (7) days of the date of this agreement.

ELLI NY DESIGN CORP.

By: _____

Lissette Olivo
Type Name:

Title: Chief Executive Officer

Date: 9/05/2023

MPCC CORP.
GENERAL CONTRACTORS

RIDER NO. 4

Re: HL82BRKLN BROOKLYN ANIMAL CARE CENTER

Elli NY Design Corp., hereafter called "Subcontractor", in consideration and by reason of its performance and furnishing work, labor, services, materials and equipment for and at certain construction project and site known as **Brooklyn Animal Care Center** for which project MPCC Corp. is the General Contractor, hereby agrees as follows:

1. Subcontractor, at all times, shall promptly and fully pay any and all prevailing rates of wages and prevailing rates of wage supplements required by Applicable State Labor Laws to be paid to any and all Subcontractor's employees performing work on said project.

2. In the event that Subcontractor fails, refuses, or neglects to pay any and all prevailing rates of wages and prevailing rates of wage supplements to its employees as required under law, Subcontractor shall indemnify hold harmless, and defend, at Subcontractors sole costs and expense, MPCC Corp., its officers, employees, agents, and associates from and against any and all liabilities, losses, demands, debts, claims, causes of action, damages, awards, judgements, actions and proceedings at law or in equity or otherwise, whether based upon statute or otherwise, costs, including attorney's fees, costs, and disbursements, arising out of and/or in connection with and/or caused by or during and/or in any way relating to such failure, refusal, or neglect by Subcontractor or pay such prevailing rates of wages and prevailing rates of wage supplements.

3. Certified Payroll Reports on forms prescribed by the contract documents shall be submitted on a weekly basis as verification of compliance.

4. The laws of the State in which the work is performed, as well as the Contract documents govern this agreement.

ELLI NY DESIGN CORP.

By: _____

Lissette Olivo
Type Name:

Title: Chief Executive Officer

Date: 9/05/2023

RIDER NO.5

INSURANCE REQUIREMENTS

SECTION I: DEFINITIONS

As used in this Exhibit A:

(a) "Project" means the project that is the subject of the Subcontract/Purchase Order.

(b) "Scope" means the scope of Work to be provided by Subcontractor under the Subcontract, as applicable.

Capitalized terms used in this Exhibit A and not defined in the Subcontract shall have the meanings generally ascribed to such terms in the commercial insurance industry in the United States.

SECTION II: STANDARD INSURANCE COVERAGES

In addition to Subcontractor purchasing and maintaining insurance as set forth in prime contract Subcontractor shall comply with the following:

1. Standard Insurance Coverages: Unless higher limits or additional coverages are required by the Subcontract, Subcontractor shall secure and maintain from the earlier of commencement of work or the effective date of the Subcontract until the end of the applicable warranty period the minimum insurance coverages and limits required by this Exhibit A. Failure of the Contractor to identify deficiencies in any insurance provided by Subcontractor shall not relieve Subcontractor from any insurance obligations. Required coverages are as follows:

   1.1 Workers Compensation and Employer's Liability

   Worker's Compensation Insurance and Employer's Liability Insurance (including occupational disease) to cover statutory benefits and limits under the Worker's Compensation laws of any applicable jurisdiction in which the Scope is to be performed, and Employers' Liability Insurance with minimum limits of one million dollars ($1,000,000) each accident; one million dollars ($1,000,000) for disease, each employee and one million dollars ($1,000,000) disease, policy limit.

   Policy coverage terms and conditions to include:

   - USL&H – 'if any' basis, where applicable.
   - Jones Act – 'if any' basis, where applicable.
   - All states endorsement, where applicable.
   - Employers Liability/Stop Gap Liability if work is performed in the State of Washington West Virginia, Wyoming, Ohio, North Dakota, or the commonwealth of Puerto Rico
   - For the attainment of Workers Compensation in monopolistic states and Puerto Rico, coverage must be secured through the state fund of that state
   - Certificate must clearly identify that coverage applies in the State in which the Project is located.

   1.2 Commercial General Liability Insurance

   Commercial General Liability Insurance written on ISO form CG 00 01 Edition date 10/01 or prior ISO edition occurrence form or equivalent for hazards of: (a) Construction Operation, (b) Elevators and Escalators, (c) Subcontractors and Independent Contractors, (d) Products and Completed Operations (with Completed Operations coverage to remain in force for two (2) years or applicable state's statute of limitation/statute of repose, whichever is longer, following completion of the Scope which must apply to the additional insured,

(e) Explosion, Collapse and Underground Hazards. The insurance shall include: (1) Contractual Liability coverage sufficient to meet the requirements of the Subcontract (including defense costs and attorney's fees assumed under contract, which shall be payable in addition to the limit of liability); (2) Personal Injury Liability (with the standard contractual and employee exclusions deleted); and (3) Notice and Knowledge of Occurrence.

If subcontractor has an exposure and/or operations in the scope include the following, exclusions for these exposures and/operations are not permitted:

	Required Yes	No
• Mold	☐	☒
• EIFS	☐	☒
• Subsidence	☐	☒
• Operations (performed within) 50' of railroad	☐	☒
• Residential operations	☐	☒
• Pollution Coverage	☐	☒

If the General Liability policy contains exclusions for these exposures and/or operations a separate policy must be obtained providing coverage for same.

The insurance shall have the following minimum limits of liability, which shall be available to the Project:

EACH OCCURRENCE	$	3,000,000
PRODUCTS-COMP/OP AGG.	$	6,000,000
PERSONAL & ADV INJURY	$	1,000,000
GENERAL AGGREGATE	$	2,000,000
FIRE DAMAGE (Any one fire)	$	300,000
MED. EXPENSE (Any one person)	$	5,000

The general aggregate coverage limits shall be per project general aggregate and shall be evidenced on Subcontractor's Certificate of Insurance.

1.3 Commercial Auto Liability Insurance

Commercial Automobile Liability insurance covering all owned, leased and non-owned vehicles used in connection with the Scope with limits of: $1,000,000 combined single limit per accident for bodily injury and property damage. The policy must include coverage for bodily injury, death and property damage arising out of ownership, maintenance or use of any motorized vehicle on or off the site of the Project, and Contractual Liability coverage. If hauling of hazardous waste is part of the Scope, Automobile Liability Insurance with a $1,000,000 combined single limit per occurrence for bodily injury and property damage applicable to all hazardous waste hauling vehicles, and include MCS 90 endorsement and the ISO Form CA 9948 (Pollution Liability Broadened Coverage for Business Automobile).

1.4 Commercial Umbrella Insurance

Commercial Umbrella for bodily injury and property damage liability over Subcontractor's primary Employer's Liability, Commercial General Liability, and Commercial Automobile Liability with limits available to the Project in the amount of $5,000,000 each occurrence and aggregate. All coverages and terms required under the Commercial General Liability, Automobile Liability and Employers Liability (sections 1.1, 1.2, and 1.3 above) must be included on the Umbrella Liability policy. Higher limits may be required by Contractor or Owner on a project by project basis.

1.5 Professional Liability Insurance

Required	
Yes	No
☒	☐

If professional services are part of the Scope, Professional Liability Insurance covering liability for claims that arise from the negligent errors, omissions or acts of the Subcontractor and its Sub-subcontractors. The policy shall include Contractual Liability coverage and be effective (retroactively if applicable) from the date of commencement of professional activities in connection with the Scope until five (5) years following completion of the Scope. Minimum limits are (1) all professionals shall provide $2,000,000 per occurrence/aggregate, and (2) Prime Design professional shall provide $5,000,000 per occurrence/aggregate. A copy of the policy shall be provided to the Contractor.

Coverage's shall include:

- Indemnification Endorsement: Contractor and Owner, and any other parties as required by Owner/Contractor Agreement as indemnified parties.
- Contractual Liability covering hold harmless agreement contained in contract must be included without exceptions.
- Delays in project completion and cost guarantees are covered.
- Insurance is primary and non-contributory
- Insuring agreement to read: to pay on behalf of in lieu of to indemnify.
- Separation of insureds
- Retroactive date: Will apply back to the first date of Professional Services.
- No exclusions for construction means, methods, techniques, sequences and procedures.
- General Aggregate must apply per project

1.6 Riggers Liability Insurance

Required	
Yes	No
☒	☐

If the Scope involves the rigging, hoisting, lowering, raising or moving of property or equipment, Riggers Liability Insurance to insure against physical loss or damage to the property or equipment in question.

1.7 Aircraft/Watercraft Insurance

Required	
Yes	No
☐	☒

If any owned, leased, chartered or hired aircraft or watercraft of any type is used in the performance of the Scope, Aircraft Liability Insurance or Watercraft Liability Insurance, as applicable, in an amount of not less than $10,000,000 per occurrence, including Passenger Liability for bodily injury and property damage.

1.8 Property Insurance

Required	
Yes	No
☐	☒

Property Insurance coverage for tools and equipment owned, leased or provided by the Subcontractor/Seller. The Property Insurance shall extend to portions of the Scope stored off the Project site or in transit to the Project site.

1.9 Leased Employee Liability

Required	
Yes	No
☐	☒

If subcontractor leases one or more employees through the use of a payroll, employee management or other company, subcontractor must directly procure workers compensation insurance. The insurance shall be written on a "Minimum Premium" or "If Any" policy form and will be in addition to the workers compensation coverage provided **to and for the leased employees** by the payroll, employee management or other company.

1.10 Boiler Insurance	Required	
	Yes	No
	☐	☒

2. Insurer Requirements: Each insurer providing insurance coverage as required in this Exhibit A shall be a licensed admitted insurer authorized to issue such coverages in the State(s) in which the Scope is performed. The insurer shall be acceptable to Contractor/Buyer and shall have an AM Best rating of "A -" or better.

3. Certificate of Insurance: Prior to commencing its performance under the Subcontract, Subcontractor shall provide Contractor a certificate of insurance evidencing the coverages required by this Exhibit A (a sample Certificate of Insurance is attached for reference purposes). Subcontractor shall maintain a current Certificate of Insurance with Contractor until the end of the applicable warranty period.

4. Sub-subcontractor Before permitting any Sub-subcontractor to perform work under the Subcontract, the Subcontractor shall require that the Sub-subcontractor maintains insurance in like form and amounts to that required herein. Subcontractor shall be responsible to ensure that Sub-subcontractor maintains insurance in like form and amounts and shall provide evidence of same to Contractor if requested.

5. Notice of Cancellation/Breach of Insurance Requirements: All insurance coverages required by this Exhibit A shall contain a provision that the coverage afforded hereunder cannot be cancelled, non-renewed, allowed to lapse, or have any restricted modifications added unless at least forty-five (45) days prior written notice has been given to the Contractor by certified mail, return receipt requested. Subcontractor's failure to obtain and maintain insurance coverages as required by this Exhibit A shall constitute a material breach of the Subcontract. In the event of such a breach, Contractor may at its option: (i) terminate the Subcontractor/Seller for default; or (ii) purchase such coverage and backcharge all costs incurred by Contractor in connection therewith to Subcontractor, including insurance premiums and administrative costs.

6. Additional Insureds: Unless otherwise required by the Subcontract, all insurance required by this Exhibit A (excluding only Workers Compensation Insurance and Professional Liability Insurance) shall name Contractor and Owner each as an additional insured (Owner, Contractor, its directors, officers, employees, subsidiaries, affiliates & parent companies) and any other parties as required by Owner/Contractor Agreement, and shall be primary and non-contributory to any insurance maintained by Contractor/Buyer and Owner and any other parties as required by Owner/Contractor Agreement, all if which shall be stated on the Certificate of Insurance provided by the Subcontractor. The Additional Insured Endorsement (on Form CG 2010 11/85, or CG 20 10 10/01 plus CG 20 37 10/01, or equivalent), shall include ongoing and completed operations, shall not contain any restrictions and shall be attached to the Certificate of Insurance.

7. Deductibles/Denial of Claims: Subcontractor shall be responsible at no additional cost to Contractor for the payment of any deductibles or self-insured retention in connection with the insurance coverages required by this Exhibit A both for itself and all additional insureds. Any self-insured retention or deductible in excess of $25,000 must be declared at the time Subcontractor submits its bid and must be specifically approved by Contractor prior to execution of the Subcontract. Subcontractor shall be responsible for any loss arising out of coverage denial by its insurance carrier.

8. Dilution of Limits/Denial of Claims: Subcontractor shall be responsible for any loss arising out of coverage denial by its insurance carrier. For those policies containing an aggregate, as soon as incurred loss activity (paid plus reserve) depletes the aggregate by 50% or more, written notice must be sent to the Contractor, by certified mail return receipt requested.

9. OCIP/CCIP Program: Subcontractor may be required by Contractor/Buyer to enroll in an Owner Controlled Insurance Program ("OCIP") or Contractor Controlled Insurance Program ("CCIP"). Subcontractor shall strictly comply with all requirements of the program in which it is required to enroll and the Subcontract Amount. Amount shall be reduced by a deduct change order by the amount included therein by Subcontractor for insurance coverage replaced by the OCIP or CCIP.

10. Waiver of Subrogation: All insurance coverages maintained by Subcontractor shall include a waiver of any right of subrogation of the insurers thereunder against Owner, Contractor and Owner's and Contractor's other contractors and all of their respective assigns, subsidiaries, affiliates, employees, insurers and underwriters, and of any right of the insurers to any set-off or counterclaim or any other deduction, whether by attachment or otherwise, in respect of any liability of any person insured under any such policy (Workers Compensation – where permitted). Subcontractor further waives all claims and all rights of subrogation against Owner, Contractor and Owner's and Contractor's other contractors and all of their respective assigns, subsidiaries, affiliates, employees, insurers and underwriters for loss of, or damage to, Subcontractor's Scope, tools, machinery, equipment, material, supplies, or any other losses within the scope of any insurance maintained by Subcontractor.

11. No Limitation: The insurance coverages maintained by Subcontractor shall not limit any of Subcontractor's indemnity obligations or other liabilities under the Subcontract.

12. Severability of Interests (Cross Liability): All insurance required by this Exhibit A (excluding only Workers Compensation Insurance and Professional Liability Insurance) shall be endorsed to provide that, inasmuch as the policy is written to cover more than one insured, all terms, conditions, insuring agreements and endorsements, with the exception of limits of liability, shall operate in the same manner as if there were a separate policy covering each insured. No cross liability exclusion will be accepted.

13. Insurance Policy Review/Exclusions/Copies: Contractor has the right, but not the duty to receive copies of all insurance policies upon request. Policies shall not contain any exclusions that are not acceptable to Contractor/Buyer and Owner. If requested by Contractor or Owner, all policies must be certified by the insurance carrier as being true and complete.

14. Claims Made Policies: Except for Professional Liability Insurance, claims made policies are not acceptable.

15. Subcontractor's obligations for loss or damage arising out of Subcontractor's work are in no way limited to the types or amounts of insurance set forth above. To the extent Subcontractor maintains insurance greater than these minimum requirements; Subcontractor agrees that such insurance shall be applicable to any of Subcontractor's liability obligations hereunder. In specifying minimum requirements herein, neither Contactor nor Owner assert or recommend this insurance as adequate to Subcontractor's requirements. Subcontractor is solely responsible to inform itself of types of insurance it may need beyond these minimum requirements to protect itself from loss, damage or liability.

ELLI NY DESIGN CORP.

By: _____

Lissette Oliva

Type Name:

Title: Chief Executive Officer

Date: 9/05/2023

MPCC CORP.
GENERAL CONTRACTORS

Attachment to **ELLI NY DESIGN CORP. – Subcontractor Agreement** dated **July 18, 2023**, for the project **HL82BRKLN Brooklyn Animal Care Center**

Certificate of Insurance

Issue Date (MM/DD/YY)

PRODUCER

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW.

INSURERS AFFORDING COVERAGE

INSURED

Subcontractor's Name and Address

INSURER	A	Insurance Carrier	
INSURER	B		
INSURER	C		
INSURER	D		
INSURER	E		

COVERAGES

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

CO LTR	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YY)	POLICY EXPIRATION DATE (MM/DD/YY)	Limits	
	GENERAL LIABILITY	POLICY NUMBER				
	X COMMERCIAL GENERAL LIABILITY	PER PROJECT AGGREGATE ENDORSEMENT			EACH OCCURRENCE	$ 3,000,000
	CLAIMS MADE [ ] OCCUR. [X]	50' RAILROAD EXCLUSION ELIMINATED			PRODUCTS-COMP.OP AGG.	$ 6,000,000
	OWNER'S & CONTRACTOR'S PROT.				PERSONAL & ADV INJURY	$ 1,000,000
	X ISO FORM CG0001	(10 01 & PRIOR OR EQUIVALENT)			GENERAL AGGREGATE	$ 2,000,000
	X CONTRACT'L LIAB.				FIRE DAMAGE (Any one fire)	$ 300,000
	GEN'L AGGREGATE LIMIT APPLIES PER:				MED. EXPENSE (Any one person)	$ 5,000
	POL-ICY [ ] PRO-JECT [X] LOC [ ]					
	AUTOMOBILE LIABILITY	POLICY NUMBER			COMBINED SINGLE LIMIT	$ 1,000,000
	X ANY AUTO				BODILY INJURY (Per person)	$
	ALL OWNED AUTOS					
	SCHEDULED AUTOS				BODILY INJURY (Per accident)	$
	X HIRED AUTOS					
	X NON-OWNED AUTOS				PROPERTY DAMAGE	$
	GARAGE					
	EXCESS LIABILITY	POLICY NUMBER				
	UMBRELLA FORM	PER PROJECT ENDORSEMENT INCLUDED			EACH OCCURRENCE	5,000,000
	OTHER THAN UMBRELLA FORM				AGGREGATE	$ 5,000,000
	WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY	POLICY NUMBER			X STATUTORY LIMITS	
					EACH ACCIDENT	$ *1,000,000
		COVERAGE APPLIES IN STATE OF JOBSITE OPERATION UNDER THIS SUBCONTRACT			DISEASE-POLICY LIMIT	$ *1,000,000
	THE PROPRIETOR, PARTNERS, EXECUTIVE OFFICERS ARE: [X] INCL. [ ] EXCL.	USL&H COVERAGE IS INCLUDED WHERE NEEDED			DISEASE-EACH EMPLOYEE	$ *1,000,000

OTHER

The coverages provided shall be pursuant to insurance requirements contained in the Subcontract.
SEE ATTACHED DESCRIPTIONS.

*EXCEPT WHERE UNLIMITED

DESCRIPTION OF OPERATIONS/LOCATIONS/VEHICLES/SPECIAL ITEMS

All operations performed under **HL82BKLN Brooklyn Animal Care Center.** The following are included as Additional Insured (Endorsement ISO Form CG 20 10 and CG 20 37 or equivalent) for all coverages except Workers' Compensation: Owner, MPCC Corp., its directors, officers, employees, subsidiaries, affiliates & parent companies; City of New York, including its officials and employees, with coverage at least as broad as ISO Forms CG 20 10 and CG 20 37, Animal Care and Control of New York City, Inc., including its officials and employees. **Endorsement Attached. This endorsement must also reflect that the coverage provided is Primary and Non-Contributory.** Waiver of Subrogation applies to all policies for all additional insureds. Umbrella policy applies excess of General Liability, Automobile Liability, and Employers Liability.

CERTIFICATE HOLDER

MPCC Corp.
81 Rockdale Avenue
New Rochelle, NY 10801

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED ** BEFORE THE EXPIRATION DATE THEREOF, THE ISSUING INSURER WILL MAIL 45 DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAMED TO THE LEFT.

AUTHORIZED REPRESENTATIVE

***NON-RENEWED OR MATERIALLY CHANGED*

RIDER NO. 6

Re: HL82BKLN NYC DDC BROOKLYN ANIMAL CARE CENTER

Description: Architectural Woodwork

The Subcontractor shall furnish all labor, materials, scaffolding, tools, equipment, trash removal, hoisting, disconnects, safe-off, demolition, necessary for the prosecution and completion of all Architectural Woodwork as per contract drawings and specification, specifically Section 064023, all required submittals, engineering, shop drawings, coordination, Addendum #1 thru 4, phasing, all required acceleration and overtime, compliance with all DDC requirements, and in accordance with Information Bidders, General Requirements Division 1, Schedule A, B, C, and D of the Contract Documents. The work shall include but not limited to the following:

8/31/23

1) Furnish and install all architectural woodwork as per contract drawings and specification Section 064023, including reception desks, all required base cabinets, base cabinets with ADA sinks, wall cabinets, plywood subbase and supports for countertops, sink counter end panels and supports, tall closet and rod, acrylic resin panels, solid surface, laminates, all associated cabinet/door/drawer/closet hardware. (Interior Shelf & Poles ONLY.)

Sinks by Others

8/31/23

2) Install only all stainless-steel countertops; stainless steel tops furnished by others.

Cabinet Door only

All other Doors by Others.

3) All required fillers and caulking/sealants associated with the work.

8/31/23

Standard Caulk. No Specialty Caulking. Cabinet Tops locations ONLY

4) All metals and resin panels at reception desk with exception of W6x12 and cable tray which will be furnished by others

5) The Subcontractor shall field-measure all dimensions prior to fabrication.

6) The Subcontractor shall refer to Architectural, Electrical, Mechanical and Plumbing drawings noting location of the work of other trades and coordinate its work accordingly.

7) The Subcontractor shall submit all required samples for Architect approval.

8) Provide all mockups as required.

9) The Subcontractor shall submit all its shop drawings, product data, and samples in a timely fashion.

9/6/23

10) The Subcontractor shall identify the location of required blocking to be able to coordinate with Carpentry Subcontractor.

11) The Subcontractor shall coordinate delivery progress and installation with all related trades and with the project schedule requirements.

12) The Subcontractor shall perform all required cutting and patching for its trade.

13) The Subcontractor shall furnish all hoisting, rigging and services necessary for installation and/or delivery in the premises of any material delivered.

8/31/23

14) The Subcontractor shall stage all its material in such a manner in order not to interfere with the operation of others.

Centerpile

15) The Subcontractor shall cleanup all rubbish and debris associated with its work under this subcontract into the container provided by MPCC.

16) The Subcontractor shall provide all necessary safety equipment to conform to OSHA regulations for its trade.

17) The Subcontractor shall coordinate the schedule fabrication and deliveries with MPCC.

18) Comply with all LEED requirements and submit all LEED data.

19) The Subcontractor shall submit its certified payroll accompanying its monthly payment application to MPCC's office.
20) The Subcontractor shall coordinate all its installation with all MEP trades, and specifically with the electrician.

ELLI NY DESIGN CORP.

By: _____

Lissette Otero

Print Name:

Title: Chief Executive Officer

Date: 9/05/2023

MPCC CORP.
GENERAL CONTRACTORS

RIDER No. 7

MERGER CLAUSE

Re HL82BKLN NYC DDC BROOKLYN ANIMAL CARE CENTER

This Agreement constitutes the entire agreement, and there are no oral or other representations regarding the subject of this Agreement that are binding on either party. All changes to this Agreement must be in writing signed by the President of MPCC Corp., Joseph Urbinati Jr., and by the counter party. It is understood and agreed that e-mail correspondence shall not constitute "a writing" to this agreement unless expressly included herein.

NO AUTHORITY TO BIND MPCC BY MPCC EMPLOYEES AND MPCC SUBORDINATE OFFICERS – NOTICE TO ALL VENDORS & CONTRACTEES

It is expressly understood that the only person who may bind MPCC Corp. in any manner is the President of MPCC Corp., Joseph Urbinati Jr. ("President").

All employees and other subordinate officers, Vice President, Treasurer, Secretary or others, are **NOT AUTHORIZED** by the President to enter any contract or agreement, including but not limited to, construction services, sales agreements, change orders, tool and equipment purchases, vehicle and equipment repair orders, sub-contractor or general contractor agreements, any modification to any existing contract, any rental agreement for real property, personal property, vehicles or equipment.

An agreement presented for payment or enforcement by any third party or vendor will be rejected if said agreement is not signed by the President and shall be deemed a legal nullity.

Notice is hereby given to all vendors, third parties and contractees that pursuant to New York Law no agent may attest to his own authority. **NO** authority may be delegated by the President without the express, written and notarized authorization by the President. Contractees must confirm and verify any delegation of authority and for the purposes of any binding effect should presume no such delegation is authorized or exists.

Moreover, all vendors assume the risk of execution of any agreement by a subordinate officer or employee not authorized to bind MPCC including but not limited to all expenses and all legal fees borne by MPCC Corp. to defend, nullify or litigate any agreement not signed by the President but put forth by the vendor as valid.

ELLI NY DESIGN CORP.

By: _____

Type Name: Lissette Oliva

Title: Chief Executive officer

Date: 9/25/2023